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TITLE 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 6—EXCEPTIONS FROM COMPETITIVE SERVICE

DEPARTMENT OF AGRICULTURE

Effective upon publication in the FEDERAL REGISTER, paragraph (a) (1) of § 6.111 is amended and paragraph (i) (1) is added as set out below.

§ 6.111 *Department of Agriculture*—(a) *General.* (1) Agents employed in field positions the work of which is financed jointly by the Department and cooperating persons, organizations, or governmental agencies outside the Federal service. This authority is not applicable to positions in the Agricultural Research Service.

* * * * *

(i) *Agricultural Research Service.* (1) Field employees on programs conducted under the terms of cooperative agreements or memorandums of understanding with States, or other non-Federal cooperating organizations, provided the employees are jointly selected and their salary is supplied by the cooperators on the basis of not less than a 40 percent contribution by each of the cooperators. This authority shall also be applicable to positions where the Department of Agriculture's share is less than 40 percent under a current cooperative agreement until such time as the agreement has been renegotiated; but in any event, it will not be applicable in such situations after June 30, 1957.

(R. S. 1753; sec. 2, 22 Stat. 403 as amended; 5 U. S. C. 631, 633)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] WM. C. HULL,
Executive Assistant.

[F. R. Doc. 56-7413; Filed, Sept. 13, 1956; 8:50 a. m.]

TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture

Subchapter B—Loans, Purchases, and Other Operations

[1956 C. C. C. Grain Price Support Bulletin 1, Supp. 1, Amdt. 1, Grain Sorghums]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1956-CROP GRAIN SORGHUMS LOAN AND PURCHASE AGREEMENT PROGRAM

SETTLEMENT

The regulations issued by the Commodity Credit Corporation and the Commodity Stabilization Service, published in 21 F. R. 4248 and 4790, and containing the specific requirements of the 1956-crop grain sorghums price support program are amended to prescribe additional purchase agreement provisions under the program.

Section 421.1835 (a) is amended by deleting subparagraph (2) and inserting a new subparagraph (2) which reads as follows:

§ 421.1835 *Settlement*—(a) *Settlement value.* * * *

(2) The provisions of this subparagraph, together with applicable provisions of the 1956 C. C. C. Grain Price Support Bulletin 1, and Supplements 1 and 2, Grain Sorghums, constitute the regulations applicable to purchase agreement operations under the 1956-crop grain sorghum price support program.

(i) The producer who signs a purchase agreement (Commodity Purchase Form 1) will not be obligated to sell any quantity of the grain sorghums to CCC. However, he may sell to CCC any quantity of the eligible grain sorghums not in excess of the quantity stated in the purchase agreement. If the producer who signs a purchase agreement wishes to sell the grain sorghums to CCC, he will have a 30-day period during which he must notify the county committee in writing

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FEDERAL REGISTER

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CFR SUPPLEMENTS

(As of January 1, 1956)

The following Supplements are now available:

Title 26 (1954) Part 221 to end (Rev., 1955) ($2.25)

Title 38 ($2.00)

Titles 44–45 ($1.00)

Title 50 ($0.60)

Previously announced: Title 3, 1955 Supp. ($2.00); Titles 4 and 5 ($1.00); Title 6 ($1.75); Title 7: Parts 1–209 ($1.25), Parts 210–899 (Rev., 1955) with Supplement ($4.50), Parts 900–959 (Rev., 1955) ($6.00), Part 960 to end (Rev., 1955) with Supplement ($5.85); Title 8 ($0.50); Title 9 ($0.70); Titles 10–13 ($0.70); Title 14: Parts 1–399 ($2.50), Part 400 to end ($1.00); Title 15 ($1.00); Title 16 ($1.25); Title 17 ($0.60); Title 18 ($0.50); Title 19 ($0.50); Title 20 ($1.00); Title 21 (Rev., 1955) ($5.50); Titles 22 and 23 ($1.00); Title 24 ($0.75); Title 25 ($0.50); Title 26 (1954) Parts 1–220 (Rev., 1955) ($2.00); Title 26: Parts 1–79 ($0.35), Parts 80–169 ($0.50), Parts 170–182 ($0.30), Parts 183–299 ($0.35), Part 300 to end, Ch. 1, and Title 27 ($1.00); Titles 28 and 29 ($1.25); Titles 30 and 31 ($1.25); Title 32: Parts 1–399 ($0.60), Parts 400–699 ($0.65), Parts 700–799 ($0.35), Parts 800–1099 ($0.40), Part 1100 to end ($0.35); Title 32A (Rev., 1955) ($1.25); Title 33 ($1.50); Titles 35–37 ($1.00); Title 39 (Rev., 1955) ($4.25); Titles 40–42 ($0.65); Title 43 ($0.50); Title 46: Parts 1–145 ($0.60), Part 146 to end ($1.25); Titles 47 and 48 ($2.25); Title 49: Parts 1–70 ($0.60), Parts 71–90 ($1.00), Parts 91–164 ($0.50), Part 165 to end ($0.65)

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of his intentions to sell. Such period shall end on the loan maturity date or such earlier date as may be prescribed by the Executive Vice President, CCC.

(ii) In the case of eligible grain sorghums stored commingled in an approved warehouse, the producer must, not later than the day following the final date of such 30-day period, or during such period of time thereafter as may be specified by the county committee, submit to the office of county committee warehouse receipts under which the warehousemen guarantees quality and quantity, for the quantity of grain sorghums he elects to sell to CCC. Such grain sorghums will be purchased, on the basis of the weight, grade, and other quality factors shown on the warehouse receipts and/or accompanying documents at the applicable support rate determined in accordance with § 421.1618 (d).

(iii) Where the producer has given written notice within the 30-day period prior to the loan maturity date of his intent to sell his grain sorghums stored in other than an approved warehouse under purchase agreement to CCC, an inspection of the grain sorghums shall be made and a sample taken and submitted for grade analysis within the 30-day period and, in any event, prior to delivery of the grain sorghums. If the grain sorghums, on the basis of the pre-delivery inspection, are of a quality which meets the requirements for a farm-storage loan, the county committee will issue delivery instructions on or after the final date of the 30-day period or the date of inspection, whichever is later. The producer must then complete delivery within the 15-day period immediately following the date the county committee issues delivery instructions, unless the county committee determines that more time is needed for delivery. Upon delivery of eligible grain sorghums to CCC, the grain sorghums shall be reinspected, and settlement shall be made at the applicable support rate for the grade and quality of the quantity of grain sorghums eligible for delivery on the basis of such reinspection. Such support rate shall be determined in accordance with § 421.1618 (d). If grain sorghums which were eligible at the time of the pre-delivery inspection are, upon delivery, of a grade or quality for which no support rate has been established, the settlement value shall be computed at the support rate established for the grade and quality of the eligible grain sorghums as determined at the time of the pre-delivery inspection, less the difference, if any, at the time of delivery, between the market price for the grade and quality of the grain sorghums determined by the pre-delivery inspection and the market price of the grain sorghums delivered, as determined by CCC: *Provided, however,* That if such grain sorghums are sold by CCC in order to determine their market price, the settlement value shall not be less than such sales price: *And provided further,* That if upon delivery the grain sorghums contain mercurial compounds or other substances poisonous to man or animals, such grain sorghums shall be sold for seed (in accordance with applicable State seed laws and regulations), fuel, or industrial uses where the end product will not be consumed by man or animals, and the settlement value shall be the same as the sales price, except that if CCC is unable to sell such commodity for the use specified above, the settlement value shall be the market value, if any, as determined by CCC, as of the date of delivery.

(iv) The producer, whose grain sorghums stored in other than an approved warehouse are not of a quality eligible for a loan at the time of pre-delivery inspection, shall be notified in writing by the county committee that his grain sorghums are not eligible for purchase by CCC. If, nevertheless, the producer informs the county office that he will condition the grain sorghums or otherwise take action to make them eligible and insists upon delivery of the grain sorghums, the county committee will issue delivery instructions and will determine upon delivery of the grain sorghums and before purchase, on the basis of a sample taken at that time, whether or not the grain sorghums are actually of an eligible grade and quality. If the grain sorghums are inadvertently accepted by CCC and are of a grade and quality below the eligibility requirements for obtaining a loan, the settlement value for such grain sorghums shall be the market price as determined by CCC for the quality of the grain sorghums delivered. If, however, the grain sorghums are of an eligible grade and quality as determined at the time of delivery, settlement shall be made at the applicable support rate, determined in accordance with § 421.1618 (d), for the grade and quality of the quantity eligible for delivery.

(v) The settlement value on any quantity of grain sorghums in excess of that stated in the purchase agreement which is delivered to, and inadvertently accepted by CCC, shall be the market price for the grade and quality of the quantity delivered, as determined by CCC.

(vi) When delivery of the grain sorghums is completed, payment will be made by sight draft drawn on CCC by the county office. The producer shall direct on Commodity Purchase Form 4 to whom payment of the proceeds shall be made.

(vii) The producer may be required to retain the grain sorghums stored in other than approved warehouse storage for a period of 60 days after the loan maturity date without any cost to CCC. CCC will not assume any loss in quantity or quality of the grain sorghums covered by a purchase agreement occurring prior to delivery to CCC, except for quality deterioration under the following circumstances. If a producer has properly requested delivery instructions for grain sorghums which were of an eligible grade and quality at the time of the pre-delivery inspection, and CCC cannot accept delivery within the 60-day period following the loan maturity date, the producer may notify the county committee at any time after such 60-day period that the grain sorghums are going out of condition or are in danger of going out of condition. Such notice must be confirmed in writing. If the county committee determines that the grain sorghums are going out of condition or are in danger of going out of condition and that the grain sorghums cannot be satisfactorily conditioned by the producer, and delivery cannot be accepted within a reasonable length of time, the county committee shall obtain an inspection and grade and quality determination. When delivery is completed, settlement shall be made on the basis of such grade and quality determination or on

the basis of the grade and quality determination made at the time of delivery, whichever is higher, and on the basis of the quantity actually delivered.

(viii) The provisions of § 421.1618 (f) shall be applicable in cases where a producer is ordered by the county committee to deliver his grain sorghums to a shipping point of greater distance than his customary shipping point.

(Sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 301, 401, 63 Stat. 1053, 1054, as amended; sec. 308, 70 Stat. 206; 15 U. S. C. 714c; 7 U. S. C. 1447, 1421)

Issued this 10th day of September 1956.

[SEAL] FRANK R. MCGREGOR,
Acting Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 56-7414; Filed, Sept. 13, 1956; 8:50 a. m.]

[1956 C. C. C. Grain Price Support Bulletin 1, Supp. 1, Amdt. 1, Rye]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1956-CROP RYE LOAN AND PURCHASE AGREEMENT PROGRAM

SETTLEMENT

The regulations issued by the Commodity Credit Corporation and the Commodity Stabilization Service, published in 21 F. R. 4040, 4796 and 5031, and containing the specific requirements of the 1956-crop rye price support program are amended to prescribe additional purchase agreement provisions under the program.

Section 421.1985 (a) is amended by deleting subparagraph (2) and inserting a new subparagraph (2) which reads as follows:

§ 421.1985 *Settlement*—(a) *Settlement value.* * * *

(2) The provisions of this subparagraph, together with applicable provisions of the 1956 CCC Grain Price Support Bulletin 1, and Supplements 1 and 2, Rye, constitute the regulations applicable to purchase agreement operations under the 1956-crop rye price support program.

(i) The producer who signs a purchase agreement (Commodity Purchase Form 1) will not be obligated to sell any quantity of the rye to CCC. However, he may sell to CCC any quantity of the eligible rye not in excess of the quantity stated in the purchase agreement. If the producer who signs a purchase agreement wishes to sell the rye to CCC, he will have a 30-day period during which he must notify the county committee in writing of his intentions to sell. Such period shall end on the applicable loan maturity date or such earlier date as may be prescribed by the Executive Vice President, CCC.

(ii) In the case of eligible rye stored commingled in an approved warehouse, the producer must, not later than the day following the final date of such 30-day period, or during such period of time thereafter as may be specified by the county committee, submit to the office of the county committee warehouse receipts under which the warehouseman guarantees quality and quantity, for the quantity of rye he elects to sell to CCC. Such rye will be purchased, on the basis of the weight, grade, and other quality factors shown on the warehouse receipts and/or accompanying documents at the applicable support rate determined in accordance with § 421.1618 (d).

(iii) Where the producer has given written notice within the 30-day period prior to the applicable loan maturity date of his intent to sell his rye stored in other than an approved warehouse under purchase agreement to CCC, an inspection of the rye shall be made and a sample taken and submitted for grade analysis within the 30-day period and, in any event, prior to delivery of the rye. If the rye, on the basis of the pre-delivery inspection, is of a quality which meets the requirements for a farm-storage loan, the county committee will issue delivery instructions on or after the final date of the 30-day period or the date of inspection, whichever is later. The producer must then complete delivery within the 15-day period immediately following the date the county committee issues delivery instructions, unless the county committee determines that more time is needed for delivery. Upon delivery of eligible rye to CCC, the rye shall be reinspected and settlement shall be made at the applicable support rate for the grade and quality of the quantity of rye eligible for delivery on the basis of such reinspection. Such support rate shall be determined in accordance with § 421.1618 (d). If rye which was eligible at the time of the pre-delivery inspection is, upon delivery, of a grade or quality for which no support rate has been established, the settlement value shall be computed at the support rate established for the grade and quality of the eligible rye as determined at the time of the pre-delivery inspection, less the difference, if any, at the time of delivery, between the market price for the grade and quality of the rye determined by the pre-delivery inspection and the market price of the rye delivered, as determined by CCC: *Provided, however,* That if such rye is sold by CCC in order to determine its market price, the settlement value shall not be less than such sales price: And *provided further,* That if upon delivery the rye contains mercurial compounds or other substances poisonous to man or animals, such rye shall be sold for seed (in accordance with applicable State seed laws and regulations), fuel or industrial uses where the end product will not be consumed by man or animals, and the settlement value shall be the same as the sales price, except that if CCC is unable to sell such rye for the use specified above, the settlement value shall be the market value, if any, as determined by CCC, as of the date of delivery.

(iv) The producer, whose rye stored in other than an approved warehouse is not of a quality eligible for a loan at the time of the pre-delivery inspection, shall be notified in writing by the county committee that his rye is not eligible for purchase by CCC. If, nevertheless, the producer informs the county office that he will condition the rye or otherwise take action to make the rye eligible and insists upon delivery of the rye, the county committee will issue delivery instructions and will determine upon delivery of the rye and before purchase, on the basis of a sample taken at that time, whether or not the rye is actually of an eligible grade and quality. If the rye is inadvertently accepted by CCC and is of a grade and quality below the eligibility requirements for obtaining a loan, the settlement value for such rye shall be the market price as determined by CCC for the quality of the rye delivered. If, however, the rye is of an eligible grade and quality as determined at the time of delivery, settlement shall be made at the applicable support rate, determined in accordance with § 421.1618 (d), for the grade and quality of the quantity eligible for delivery.

(v) The settlement value on any quantity of rye in excess of that stated in the purchase agreement which is delivered to, and inadvertently accepted by CCC, shall be the market price for the grade and quality of the quantity delivered, as determined by CCC.

(vi) When delivery of the rye is completed, payment will be made by sight draft drawn on CCC by the county office. The producer shall direct on Commodity Purchase Form 4 to whom payment of the proceeds shall be made.

(vii) The producer may be required to retain the rye stored in other than approved warehouse storage for a period of 60 days after the applicable loan maturity date without any cost to CCC. CCC will not assume any loss in quantity or quality of the rye covered by a purchase agreement occurring prior to delivery to CCC, except for quality deterioration under the following circumstances. If a producer has properly requested delivery instructions for rye which was of an eligible grade and quality at the time of the pre-delivery inspection, and CCC cannot accept delivery within the 60-day period following the applicable loan maturity date, the producer may notify the county committee at any time after such 60-day period that the rye is going out of condition or is in danger of going out of condition. Such notice must be confirmed in writing. If the county committee determines that the rye is going out of condition or is in danger of going out of condition and that the rye cannot be satisfactorily conditioned by the producer, and delivery cannot be accepted within a reasonable length of time, the county committee shall obtain an inspection and grade and quality determination. When delivery is completed, settlement shall be made on the basis of such grade and quality determination or on the basis of the grade and quality determination made at the time of delivery, whichever is higher, and on the basis of the quantity actually delivered.

(viii) The provisions of § 421.1618 (f) shall be applicable in cases where a producer is ordered by the county committee to deliver his rye to a shipping point of greater distance than his customary shipping point.

(Sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 301, 401, 63 Stat. 1053, 1054, as amended; sec. 308, 70 Stat. 206; 15 U. S. C. 714c; 7 U. S. C. 1447, 1421)

Issued this 10th day of September 1956.

[SEAL] FRANK R. MCGREGOR,
Acting Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 56-7415; Filed, Sept. 13, 1956; 8:51 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 54186]

PART 26—DISCLOSURE OF INFORMATION

SUSPENSION OF DISCLOSURE

Certain commercial data relating to imports and exports is made available to accredited representatives of the press under the terms and conditions set forth in §§ 26.5, 26.6, and 26.7 of the Customs Regulations. Section 26.7 provides that upon the written application of an importer or exporter information and data concerning merchandise imported or exported by the applicant shall not be allowed to be copied from vessel manifests. However, applications by masters or owners of vessels for the withholding of information and data contained in manifests of vessels under their control are required to be supported by evidence that the publication of such data has been or will be detrimental to the applicant.

In order that the same conditions shall govern the granting of such applications made by importers or exporters as now apply to applications made by masters or owners of vessels § 26.7 (a) of the Customs Regulations is amended to read as follows:

(a) Upon written application of any importer, exporter, or master or owner of any vessel, the collector of customs shall refuse to permit any person, except as provided for in § 26.4, to copy from manifests any information or data concerning merchandise imported or exported by the applicant, or carried by the vessel or vessels controlled by the applicant, provided in each case that the collector is satisfied by evidence presented to him that publication of the information or data has been or will be detrimental or prejudicial to the applicant.

(R. S. 161, 251, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 66, 1624)

Notice of the proposed issuance of the foregoing amendment was published in the FEDERAL REGISTER on March 8, 1956 (21 F. R. 1492). Due consideration was accorded the relevant material, views, and arguments submitted pursuant to the notice and no change was found to be warranted.

This amendment shall apply only to such applications for suspension of disclosure filed 30 days after the date of publication of this amendment in the FEDERAL REGISTER. It shall then apply only with respect to manifests of vessels filed on and after such date. Any applications granted by the collectors of customs before that date shall continue in effect.

This amendment has no effect at this time upon the disclosure of export data from outward vessel manifests filed with the collectors of customs. Disclosure of such data remains suspended in accordance with § 26.7 (c) of the Customs Regulations and Treasury Decision 52583 presently in effect as to export data.

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: September 6, 1956.

DAVID W. KENDALL,
Acting Secretary of the Treasury.

[F. R. Doc. 56-7407; Filed, Sept. 13, 1956; 8:49 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 212]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

PROCEDURE ALTERATIONS

The standard instrument approach procedure alterations appearing hereinafter are adopted to become effective when indicated in order to promote safety. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

NOTE: Where the general classification (LFR, VAR, ADF, ILS, GCA, or VOR), location, and procedure number (if any) of any procedure in the amendments which follow, are identical with an existing procedure, that procedure is to be substituted for the existing one, as of the effective date given, to the extent that it differs from the existing procedure; where a procedure is cancelled, the existing procedure is revoked; new procedures are to be placed in appropriate alphabetical sequence within the section amended.

1. The low frequency range procedures prescribed in § 609.6 are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If an LFR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums				If visual contact not established at authorized minimums after passing facility within distance specified or if landing not accomplished
							Condition	2 engines or less		More than 2 engines; more than 65 knots	
								65 knots or less	More than 65 knots		
1	2	3	4	5	6	7	8	9	10	11	12
SAN JUAN, P. R. Isla Grande, 9'. SBRAZ-SJU. Procedure No. 1. Amendment No. 5. Effective date: October 6, 1956. Supersedes Amendment 4, dated March 26, 1951. Major changes: Raises circling minimums due TV tower. Adds approach from Isla Verde and Point Tuna. Variation changes.	Barceloneta FM	097-21	1,200	N side of course; 277° outbound, 097° inbound. 1,200' within 15 miles.	800	090-3.6	T-dn C-dn S-dn 9R A-dn	300-1 600-1 400-1 800-2	300-1 600-1 400-1 800-2	300-1½ 600-1½ 400-1 800-2	Within 3.6 miles, climb to 1,200' on E course SJU LFR (090°) within 25 miles. CAUTION: 485' tower 2 miles SW of airport. *Isla Verde Intersection: E course SJU LFR and 236 bearing to SJP Radiobeacon.
	Isla Verde* Intersection	270-9	2,000								
	Point Tuna	337-32	4,100								

2. The automatic direction finding procedures prescribed in § 609.8 are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If an ADF instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums				If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	2 engines or less		More than 2 engines (more than 65 knots)	
								65 knots or less	More than 65 knots		
1	2	3	4	5	6	7	8	9	10	11	12
SAN JUAN, P. R. Isla Grande, 9'. SBRAZ–SJU. Procedure No. 1. Amendment No. 3. Effective date: October 6, 1956. Supersedes Amendment 2, dated July 23, 1951. Major changes: Raises circling minimums due to TV tower; changes initial approach points; publishes procedure in Part 609, Regulations of Administration.	Borinquen Radiobeacon	101–53	3,000	N side of course: 277° outbound, 097° inbound. 1,200' within 15 miles.	800	090—3.6	T–dn C–dn S–dn 9R A–dn	300–1 600–1 400–1 800–2	300–1 600–1 400–1 800–2	300–1 600–1½ 400–1 800–2	Within 3.6 miles, climb to 1,200' on course of 090° from SJU LFR within 25 miles. SHUTTLE: 097° outbound, 297° inbound on SJU LFR at 3,000' within 25 miles. CAUTION: 485' tower 2 miles SW of airport. *Privately owned facilities.
	South Cabos Radiobeacon	126–354	3,000								
	Piarco Radiobeacon (Port of Spain).	336–550	4,100								
	St. Croix Radiobeacon*	308–91	5,000								
	St. Thomas Radiobeacon*	282–69	3,000								
	Oscar–7 (Intersection 164° bearing to SJU and 196° to BQN).	164–105	3,000								
	Bronson (Intersection 126° bearing to SJU and 216° to BQN).	126–48	3,000								
	Charley Fox–2 (Intersection 029° bearing to SJU and 320° to HIV).	029–160	5,500								
	Lima–5 (Intersection 012° bearing to SJU and 312° to HIV).	012–148	5,500								

These procedures shall become effective on the dates indicated on the procedures.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

JAMES T. PYLE,
Acting Administrator of Civil Aeronautics.

[F. R. Doc. 56–7031; Filed, Sept. 13, 1956; 10:46 a. m.]

TITLE 15—COMMERCE AND FOREIGN TRADE

Chapter III—Bureau of Foreign Commerce, Department of Commerce

Subchapter B—Export Regulations

[8th Gen. Rev. of Export Regs., Amdt. 9]

PART 371—GENERAL LICENSES

SURPLUS AGRICULTURAL COMMODITIES AND MANUFACTURES THEREOF

Section 371.8 *General License GRO; shipments of non-Positive List commodities*, paragraph (c) *Surplus agricultural commodities and manufactures thereof* is amended to read as follows:

(c) *Surplus agricultural commodities and manufactures thereof*[1]—(1) *Contracts of sale in excess of $10,000.* (i) Prior to or at the time of entering into a contract to sell for export or otherwise dispose of for exportation to other than Group O countries: (*a*) Any commodity obtained directly or indirectly from the Commodity Credit Corporation, either in the form acquired or in processed form; (*b*) any commodity being sold in substitution for a commodity acquired from the CCC under an export disposal program; or (*c*) any commodity which is subsidized for export by the CCC, either by cash payment or payment in kind; an exporter shall, where the contract is entered into prior to exportation of the commodity under this general license, either in the contract of sale or in connection therewith, obtain from the foreign purchaser, where the contract is in excess of $10,000, a written acknowledgement of the purchaser's understanding of (*1*) the prohibition without prior BFC approval against exportation or reexportation by any person set forth in this section and in § 371.4, of any such commodities, to Macao, Hong Kong and destinations in Subgroup A (see § 371.3) and (*2*) the sanction of denial of export privileges which may be imposed for violation of the export regulations. Where a contract of sale involving more than $10,000 is not to be entered into until after exportation under this general license, the exporter shall, either in the contract of sale or in connection therewith, obtain the same type of acknowledgement from the foreign purchaser prior to, or at the time of entering into the contract of sale.

[1] This procedure is also applicable to such shipments under General License GHK (§ 371.23).

(ii) Exporters who have a continuing and regular relationship with a foreign purchaser may obtain a blanket acknowledgement from such purchaser covering all transactions involving surplus agricultural commodities and manufactures thereof purchased from CCC or subsidized for export by that agency.

(2) *Exportations.* (i) Exporters making shipment under this section need not comply with the provisions of paragraph (b) of this section regarding shipments to redistribution points. However, for all exportations of commodities under this paragraph, the following statement shall be placed on all copies of the Shipper's Export Declaration and all copies of bills of lading and commercial invoices.

U. S. law prohibits disposition of these commodities to the Soviet Bloc, Communist China, North Korea, Communist controlled areas of Viet Nam and Laos, Macao or Hong Kong, except as authorized by the U. S.

(ii) In connection with any exportation, regardless of value, of the following commodities, the exporter shall file an additional copy of the Shipper's Export Declaration with the Collector of Customs and send one copy of the on-board ocean Bill of Lading (for exportation by rail, one copy of the Railroad Bill of Lading) to the BFC, Washington 25, D. C.:

(a) A commodity obtained directly or indirectly from CCC in a purchase from that agency amounting to $100,000 or more;

(b) A commodity exported in substitution for a commodity acquired from CCC under an export disposal program in a purchase from that agency amounting to $100,000 or more; or

(c) A commodity which is subsidized for export by the CCC either by cash payment or by payment in kind where such exportation is based on a sales or consignment contract with a foreign party amounting to $100,000 or more, except that for exportations of cotton textiles, other than cotton waste, the sales or consignment contract amounts to $10,000 or more. For exportations of cotton textiles, other than cotton waste, no additional copies of Shipper's Export Declaration or Bills of Lading are required for sales to foreign purchasers located in Group O countries.

(iii) The additional copy of the Shipper's Export Declaration and the copy of the Bill of Lading shall bear the notation FC–2610 in the upper right hand corner. In addition, the Bill of Lading shall show in the lower left hand portion the number of the corresponding Shipper's Export Declaration and the CCC identification number (CCC sales contract number or CCC subsidy registration number).

(3) *Retention of records.* The document of acknowledgment required to be obtained from the foreign purchaser, (subparagraph (1) of this paragraph), and the documents constituting evidence of the contract of purchase and sale must be kept available by the exporter for inspection, upon demand, by the BFC for a period of three years from the date of exportation.

NOTE: Where commodities are to be exported by a party other than the original purchaser of the commodities from the Commodity Credit Corporation, the original purchaser shall inform the exporter in writing of the requirement for (1) obtaining the signed acknowledgment from the foreign purchaser and (2) for submitting the additional copy of the Shipper's Export Declaration and Bill of Lading.

This amendment shall become effective as of September 19, 1956.

(Sec. 3, 63 Stat. 7, as amended; 50 U. S. C. App. 2023, E. O. 9630, 10 F. R. 12245, 3 CFR, 1945 Supp., E. O. 9919, 13 F. R. 59, 3 CFR, 1948 Supp.)

[SEAL] LORING K. MACY,
Director,
Bureau of Foreign Commerce.

[F. R. Doc. 56–7434; Filed, Sept. 13, 1956; 8:53 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

PART 141c—CHLORTETRACYCLINE (OR TETRACYCLINE) AND CHLORTETRACYCLINE- (OR TETRACYCLINE-) CONTAINING DRUGS; TESTS AND METHODS OF ASSAY

PART 146a—CERTIFICATION OF PENICILLIN AND PENICILLIN-CONTAINING DRUGS

PART 146c—CERTIFICATION OF CHLORTETRACYCLINE (OR TETRACYCLINE) AND CHLORTETRACYCLINE- (OR TETRACYCLINE-) CONTAINING DRUGS

MISCELLANEOUS AMENDMENTS

Under the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463; 21 Stat. 11, 63 Stat. 409, 67 Stat. 389; sec. 701, 52 Stat. 1055; 21 U. S. C. 357, 371) and delegated to the Commissioner of Food and Drugs by the Secretary (20 F. R. 1996), the regulations for tests and methods of assay for antibiotic and antibiotic-containing drugs (21 CFR Part 141c) and certification of antibiotic and antibiotic-containing drugs (21 CFR Parts 146a, 146c) are amended as indicated below:

1. In § 141c.218 *Tetracycline hydrochloride,* the concluding sentence of paragraph (a) *Potency* is amended by changing the words "for intravenous use" to read "intended for use by injection".

2. Part 141c is amended by adding the following new section:

§ 141c.230 *Chlortetracycline hydrochloride powder topical; tetracycline hydrochloride powder topical*—(a) *Potency*—(1) *Dry powder.* Using a 3.0-gram sample or the entire contents of the immediate container for each determination, prepare the sample as follows: Using a high-speed blender, blend a 3.0-gram sample in a glass blending jar containing 500 milliliters of 0.01 *N* HCl, or reconstitute in the immediate container as directed in the labeling of the drug. Transfer an appropriate aliquot of 1.0 milliliter to 5.0 milliliters to a 100-milliliter volumetric flask and make to mark with 0.01 *N* HCl. Withdraw an aliquot from the volumetric flask, and if it is chlortetracycline hydrochloride dilute to 0.06 μg. per milliliter, using 0.1 *M* potassium phosphate buffer, pH 4.5, and proceed as directed in § 141c.201 (a). If it is tetracycline hydrochloride, dilute to 0.24 μg. per milliliter, using 0.1 *M* potassium phosphate buffer, pH 4.5, and proceed as directed in § 141c.218 (a). The average potency is satisfactory if it contains not less than 85 percent of the number of milligrams of chlortetracycline hydrochloride or tetracycline hydrocloride per gram or per immediate container that it is represented to contain.

(2) *Powder packaged with inert gases.* Proceed as directed in § 141c.201 (a) if it is chlortetracycline hydrochloride powder or § 141c.218 (a) if it is tetracycline hydrochloride powder, except prepare the sample as follows: Place a representative number of containers in a suitable sharp freezing unit having a temperature not higher than −30° C. After freezing, cut open the containers and transfer the contents of each to a suitable beaker and allow gas to evaporate. After the gas has evaporated, wash the dry residue remaining in the container into the beaker with approximately 400 milliliters of 0.1 *N* HCl, stir vigorously, and after the sample has dissolved wash the entire contents of the beaker into a 500-milliliter volumetric flask and make to mark with 0.1 *N* HCl. Use an appropriate aliquot of each of these solutions and proceed as directed in § 141c.201 (a) if it is chlortetracycline hydrochloride powder, or § 141c.218 (a) if it is tetracycline hydrochloride powder, to determine the total quantity of chlortetracycline hydrochloride or tetracycline hydrochloride in each container. Expel the drug from a like number of containers as directed in its labeling. After all gas (with drug) has been expelled, cut open the containers and place each in a large beaker containing 500 milliliters of 0.01 *N* HCl. Let stand for not less than 15 minutes, with frequent agitation. Remove an aliquot and proceed as directed in § 141c.201 (a) if it is chlortetracycline hydrochloride powder or § 141c.218 (a) if it is tetracycline hydrochloride powder, to determine the quantity of chlortetracycline hydrochloride or tetracycline hydrochloride that remains in each container. The quantity of chlortetracycline hydrochloride or tetracycline hydrochloride expelled is determined by subtracting the average amount of the residue found from the average total amount contained in the containers. Its potency is satisfactory if it contains not less than 85 percent of the number of milligrams of chlortetracycline hydrochloride or tetracycline hydrochloride that it is represented to contain.

(b) *Moisture.* Proceed as directed in § 141a.5 (a) of this chapter, except if it is packaged with inert gases proceed as directed in § 141b.117 (c) of this chapter.

3. Section 146a.47 *Procaine penicillin for aqueous injection* is amended in the following respects:

a. In paragraph (a) *Standards of identity* * * *, the second sentence is changed to read: "If it is an aqueous suspension of the drug, it may contain procaine hydrochloride in a concentration

not exceeding 2.0 percent, one or more suitable and harmless stabilizing agents, and, if it is intended solely for veterinary use, it may contain cortisone or a suitable derivative of cortisone."

b. In paragraph (c) *Labeling*, subparagraph (1) (v) is amended to read as follows:

(v) If the drug contains preservatives or added procaine hydrochloride or cortisone or a derivative of cortisone, the name and quantity of each such added ingredient.

c. Paragraph (c) (3) is amended by renumbering subdivision (iii) as (iv) and inserting a new subdivision (iii), reading as follows, between subdivision (ii) and renumbered subdivision (iv):

(iii) If it is intended solely for veterinary use and it contains cortisone or a derivative of cortisone, the statement "Caution: Federal law restricts this drug to sale by or on the order of a licensed veterinarian."

d. Paragraph (c) (4) is amended by changing the period at the end of the first sentence to a comma and adding the following new clause: "unless it contains cortisone or a derivative of cortisone."

e. Paragraph (c) is further amended by adding new subparagraphs (5) and (6), reading as follows:

(5) On the circular or other labeling within or attached to the package, if it is intended solely for veterinary use and it contains cortisone or a derivative of cortisone, adequate directions and warnings for the veterinary use of such drug by a veterinarian licensed by law to administer it.

(6) On the label and labeling, if it contains cortisone or a derivative of cortisone, after the name "procaine penicillin for aqueous injection," wherever it appears, the words "with ------," in juxtaposition with such name, the blank being filled in with the common or usual name of each such ingredient.

4. In § 146a.86 *Benzathine penicillin G and procaine penicillin for aqueous injection*, paragraph (c) is amended by inserting after the words "18 months" the parenthetical clause, "(except that the blank may be filled in with the date that is 24 months, if the person who requests certification has submitted to the Commissioner results of tests and assays showing that after having been stored for such period of time such drug as prepared by him complies with the standards prescribed for it)".

5a. In § 146c.205 *Chlortetracycline powder* * * *, paragraph (a) *Standards of identity* * * * is amended by inserting the word "and" after the word "colorings," changing the comma after "flavorings" to a period, and deleting the remainder of the sentence.

b. Section 146c.205 (c) (1) (iv) is amended by deleting ", a local anesthetic,".

6. Section 146c.218 *Tetracycline hydrochloride* is amended in the following respects:

a. In paragraph (a) *Standards of identity* * * *, subparagraph (1) is amended by changing the words "for intravenous use" to read "intended for use by injection", and subparagraph (8) is changed to read:

(8) Its extinction coefficient $E\frac{1\%}{1\ Cm.}$, and the extinction coefficient of the tetracycline hydrochloride used in the manufacture of tetracycline hydrochloride intended for use by injection, is 372±15 at 380 millimicrons.

b. In paragraph (b) *Packaging* * * *, subparagraph (2) is amended by changing the words "intravenous use" to read "use by injection".

c. Paragraph (b) (3) is amended by changing the words "for intravenous use" to read "intended for use by injection".

7. Part 146c is amended by adding the following new section:

§ 146c.230 *Chlortetracycline hydrochloride powder topical; tetracycline hydrochloride powder topical*—(a) *Standards of identity, strength, quality, and purity.* Chlortetracycline hydrochloride powder topical and tetracycline hydrochloride powder topical are chlortetracycline hydrochloride or tetracycline hydrochloride, with or without suitable and harmless preservatives, diluents, and local anesthetics. The moisture content is not more than 2 percent. The chlortetracycline hydrochloride used conforms to the requirements of § 146c.201 (a), except § 146c.201 (a) (2), (4), and (5). The tetracycline hydrochloride used conforms to the requirements of § 146c.218 (a), except § 146c.218 (a) (2), (4), and (5). Each other substance used, if its name is recognized in the U. S. P. or N. F., conforms to the standards prescribed therefor by such official compendium.

(b) *Packaging.* In all cases the immediate container shall be a tight container as defined by the U. S. P. The composition of the immediate container shall be such as will not cause any change in the strength, quality, or purity of the contents beyond any limit therefor in applicable standards, except that minor changes so caused that are normal and unavoidable in good packaging, storage, and distribution practice shall be disregarded. Each such container may contain one or more suitable and harmless inert gases.

(c) *Labeling.* Each package shall bear on its label or labeling, as hereinafter indicated, the following:

(1) On the outside wrapper or container and the immediate container:

(i) The batch mark.

(ii) The number of milligrams of chlortetracycline hydrochloride or tetracycline hydrochloride per gram or per immediate container.

(iii) The statement "Expiration date ------," the blank being filled in with the date that is 48 months after the month during which the batch was certified if it is chlortetracycline hydrochloride powder topical, except that if it is packaged with inert gases or it is tetracycline hydrochloride powder topical the blank shall be filled in with the date that is 24 months after the month during which the batch was certified: *Provided, however*, That such expiration date may be omitted from the immediate container if such immediate container is packaged in an individual wrapper or container.

(iv) If it contains preservatives or local anesthetics, the name and quantity of each such ingredient.

(2) On the circular or other labeling within or attached to the package, if it is packaged for dispensing, adequate directions and warnings for prophylactic use by man, or for the veterinary use of such drug. Such circular or other labeling may also bear a statement that a brochure or other printed matter containing information for other uses of such drug by practitioners licensed by law to administer it will be sent to such practitioners on request.

(d) *Request for certification; samples.* (1) In addition to complying with the requirements of § 146.2 of this chapter, a person who requests certification of a batch shall submit with his request a statement showing the batch mark, the number of packages of each size in such batch, the batch mark and (unless it was previously submitted) the date on which the latest assay of the chlortetracycline hydrochloride or tetracycline hydrochloride used in making such batch was completed, the number of milligrams in each immediate container, the quantity of each ingredient used in making the batch, the date on which the latest assay of the drug comprising such batch was completed, and a statement that each ingredient used in making the batch conforms to the requirements prescribed therefor by this section.

(2) Except as otherwise provided in subparagraph (4) of this paragraph, such person shall submit in connection with his request results of the tests and assays listed after each of the following, made by him on an accurately representative sample of:

(i) The batch: Potency and moisture.

(ii) The chlortetracycline hydrochloride or tetracycline hydrochloride used in making the batch: Potency, toxicity, moisture, pH, crystallinity, and extinction coefficient if it is tetracycline hydrochloride.

(3) Except as otherwise provided by subparagraph (4) of this paragraph, such person shall submit in connection with his request, in the quantities hereinafter indicated, accurately representative samples of the following:

(i) The batch: One immediate container for each 5,000 containers in the batch, but in no case less than 5 immediate containers (or if it is packaged with inert gases, not less than 7 immediate containers) or more than 12 immediate containers. Such sample shall be collected by taking single immediate containers at such intervals throughout the entire time of packaging the batch that the quantities packaged during the intervals are approximately equal.

(ii) The chlortetracycline hydrochloride or tetracycline hydrochloride used in making the batch: 10 packages, each containing approximately equal portions of not less than 60 milligrams, packaged in accordance with the requirements of § 146c.201 (b).

(iii) In case of an initial request for certification, each other ingredient used

in making the batch: One package of each, containing approximately 5 grams.

(4) No result referred to in subparagraph (2) (ii) of this paragraph, and no sample referred to in subparagraph (3) (ii) of this paragraph, is required if such result or sample has been previously submitted.

(e) *Fees.* The fee for the services rendered with respect to each batch under the regulations in this part shall be:

(1) § 4.00 for each immediate container in the samples submitted in accordance with paragraph (d) (3) of this section.

(2) If the Commissioner considers that investigations, other than examination of such immediate containers, are necessary to determine whether or not such batch complies with the requirements of § 146.3 of this chapter for the issuance of a certificate, the cost of such investigations.

The fee prescribed by subparagraph (1) of this paragraph shall accompany the request for certification unless such fee is covered by an advance deposit maintained in accordance with § 146.8 (d) of this chapter.

(f) *Exemption of chlortetracycline sydrochloride powder topical and tetracycline hydrochloride powder topical for veterinary use from certification.* Chlortetracycline hydrochloride powder topical and tetracycline hydrochloride powder topical that conform to the requirements of paragraphs (a), (b), and (c) of this section shall be exempt (unless they are packaged with inert gases) from the requirements of sections 502 (1) and 507 of the act, if they comply with all the following conditions:

(1) They are intended solely for veterinary use and are conspicuously so labeled.

(2) The labels bear an expiration date that is not more than 48 months, if it is chlortetracycline hydrochloride powder topical, or 24 months, if it is tetracycline hydrochloride powder topical, after the month in which the batch was last assayed and released by the manufacturer.

(3) The circular or other labeling within or attached to the package bears information that the drug is intended solely for the prevention of infection in superficial cuts and abrasions and for the treatment of pinkeye in veterinary animals, and further, bears directions and warnings adequate for such use.

Notice and public procedure are not necessary prerequisites to the promulgation of this order, and I so find, since it was drawn in collaboration with interested members of the affected industry, since it relaxes existing requirements, and since it would be contrary to public interest to delay providing for the amendments set forth above.

I further find that chlortetracycline hydrochloride powder topical and tetracycline hydrochloride powder topical, intended solely for veterinary use and conspicuously so labeled, need not comply with sections 502 (1) and 507 of the Federal Food, Drug, and Cosmetic Act, in order to ensure their safety and efficacy, provided they are labeled in compliance with the regulations set forth in amendment 6 of this order.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371. Interpret or apply sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357)

Dated: September 7, 1956.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 56-7392; Filed, Sept. 13, 1956; 8:46 a. m.]

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter I—Office of Defense Mobilization

[Defense Mobilization Order VII-6, Supp. 10]

DMO VII-6—EXPANSION GOALS

RUTILE

1. Defense Mobilization Order VII-6, dated December 3, 1953 (18 F. R. 7876) is supplemented by transferring the following expansion goal from List III, Open to List I, Closed.

Goal No.	Title	Delegate agency
163	Rutile	Interior.

2. This supplement shall be effective on September 11, 1956.

OFFICE OF DEFENSE MOBILIZATION,
ARTHUR S. FLEMMING,
Director.

[F. R. Doc. 56-7385; Filed, Sept. 13, 1956; 8:45 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 202—ANCHORAGE REGULATIONS

PART 207—NAVIGATION REGULATIONS

LOS ANGELES AND LONG BEACH HARBORS, CALIFORNIA

1. Pursuant to the provisions of section 7 of the River and Harbor Act of March 4, 1915 (38 Stat. 1053; 33 U. S. C. 471) and the provisions of the Act of Congress approved April 22, 1940 (54 Stat. 150; 33 U. S. C. 180), §§ 202.100 and 202.214 establishing and governing special anchorages and anchorage grounds in Los Angeles and Long Beach Harbors, California, are amended redefining the boundaries to permit other use of certain waters and to conform with recent changes in the harbor lines and other minor revisions, as follows:

§ 202.100 *Los Angeles and Long Beach Harbors, Calif.*—(a) *Area A-1.* North of a line 200 feet from and parallel to the axis of the San Pedro breakwater; bayward of the mean high tide line; southwest of a line bearing 125° from the tall concrete stack south of Fort MacArthur lower reservation; west of the bulkhead line from U. S. 104 through U. S. 102, extended, and northwest of a line extending from U. S. 103 to U. S. 101.

* * * * *

(54 Stat. 150, as amended; 33 U. S. C. 180, 258, 319)

§ 202.214 *Los Angeles and Long Beach Harbors, Calif.*—(a) *The anchorage grounds*—(1) *Commercial and Naval Anchorage B (Los Angeles Harbor).* North of a line 200 feet from and parallel to the axis of the San Pedro Breakwater; southeast of a line ranging from U. S. 101 towards U. S. 115; southwest of a line bearing 125° from the tall concrete stack south of Fort MacArthur lower reservation; south of a line bearing 75° from U. S. 100 (white cross near the west end of the San Pedro Breakwater); and west of a line bearing 172° from Fish Harbor 2 Light and passing through the east white cross on the San Pedro Breakwater.

(i) In this area the requirements of commercial ships will predominate. In case of Navy requirements, see subparagraph (2) (iii) of this paragraph.

(ii) Vessels requiring examination by quarantine, customs, or immigration authorities may anchor in this area when quarantine anchorage F is not available for this purpose.

(iii) Fixed mooring piles or stakes and floats or buoys for marking anchors or moorings in place are prohibited.

(2) *Commercial Anchorage C (Los Angeles Harbor).* North of a line 200 feet from and parallel to the axis of the Middle Breakwater; north of a line about 3,000 feet long, bearing 293° from Los Angeles entrance East Light; east of a line bearing 152° from Fish Harbor 2 Light; west of a line bearing 338° from the white cross near the west end of the Middle Breakwater; and bayward of the line of mean high water; excepting therefrom non-anchorage Area I and the Navy restricted area for degaussing ranges.

(i) In this area the requirements of commercial ships will predominate. Vessels requiring examination by quarantine, customs, or immigration authorities may anchor in this area when quarantine anchorage F is not available for this purpose.

(ii) Fixed mooring piles or stakes and floats or buoys for marking anchors or moorings in place are prohibited.

(iii) The established anchorages for naval vessels having been found inadequate at times, when an especially large number of naval vessels are gathered in the harbor, a special anchorage chart overlay for naval anchorages superimposed on U. S. Coast and Geodetic Survey Chart No. 5148 (not published in this section) will be prepared showing a numbered series of anchorages in order that a naval vessel may be ordered to proceed to a designated numbered anchorage in the harbor. Those designated anchorages, with the exception of those in naval anchorages D and E, which are primarily for naval vessels, are not set aside for the exclusive use of naval vessels, but permission will be given for naval vessels to use them when available. When the Captain of the Port receives notification

from the proper naval authorities that it is desired to utilize the specially numbered naval anchorages in anchorages B, C, F, or G, he will authorize the use by naval vessels of the required numbers if they can be made available, the commercial conditions at the time being given proper consideration. If, in the opinion of the Captain of the Port, there are sufficient reasons why the numbers first asked for should not be used, he will confer with the naval officer making the request and if other numbers can be agreed upon he will authorize their use.

(3) *Naval Anchorage D.* East of a line bearing 338° from a white cross near the west end of the Middle Breakwater, said line being the easterly boundary line of Commercial Anchorage C; north of a line parallel to and 200 feet from the axis of the Middle Breakwater; southwest of a line bearing 310° from Long Beach entrance West Light and passing through the east end of the Navy Mole; south of the bayward side of the Navy Mole; and south of the south line of the navy restricted area for degaussing ranges.

(i) In this area the requirements of the naval service will predominate. Vessels other than those of the Navy may anchor temporarily in this area when necessary and space permits. Whenever this area is required for the anchoring of naval vessels, it shall be immediately cleared of commercial vessels by the Captain of the Port upon request of the appropriate naval authority.

(ii) The southeast and southwest portions of this anchorage are reserved for use as Explosives Anchorages Nos. 1 and 2 whenever a necessity arises therefor. See subparagraph (8) (i) and (ii) of this paragraph.

(iii) Floats or buoys for marking anchors or moorings in place and fixed mooring piles or stakes are prohibited, except those which may be required by the Navy and approved by the Captain of the Port.

* * * * *

(5) *Quarantine Anchorage F.* * * *

(i) Vessels arriving at quarantine and awaiting inspection will anchor in this anchorage, except that if space in this anchorage is not available then any available anchorages in Anchorages B and C may be temporarily occupied for examination. In case of Navy requirements, see subparagraph (2) (iii) of this paragraph.

* * * * *

(6) *Commercial Anchorage G (Long Beach Harbor).* * * *

(i) In this area the requirements of commercial ships will predominate. In case of Navy requirements, see subparagraph (2) (iii) of this paragraph.

* * * * *

(Sec. 7, 38 Stat. 1053, as amended; 33 U. S. C. 471)

2. Pursuant to the provisions of section 7 of the River and Harbor Act of August 8, 1917 (40 Stat. 266; 33 U. S. C. 1), § 207.616 establishing and governing the use and navigation of a naval restricted area in Los Angeles and Long Beach Harbors, California, is hereby amended extending the boundaries to include an additional area for installation of a degaussing facility, as follows:

§ 207.616 *Los Angeles and Long Beach Harbors, Calif.; naval restricted area*—(a) *The area.* The waters of Los Angeles and Long Beach Harbors lying westerly of the Naval Base Mole and extending north from the westerly prolongation of the southern side of the mole and east from the eastern side and the southerly prolongation of the eastern side of non-anchorage Area I.

(b) *The regulations.* (1) No vessels, other than vessels operated by or for the United States, shall anchor within the area at any time.

(2) Dredging, dragging, seining, other fishing operations, and other activities not under the direction of the United States which might foul underwater installations are prohibited.

(3) All vessels entering the area, other than vessels operated by or for the United States, shall proceed across the area by the most direct route and without unnecessary delay.

(4) Only naval vessels and seaplanes shall enter the basin lying inside the jetty in front of the Naval Air Station, except as authorized by the enforcing agency.

(5) The regulations in this section shall be enforced by the Commander, U. S. Naval Base Los Angeles, Long Beach, California, and such agencies as he may designate.

[Regs., August 29, 1956, 800.2121 (Los Angeles-Long Beach Harbors, Calif.)-ENGWO] (Sec. 4, 28 Stat. 362, as amended; 33 U. S. C. 1)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 56-7390; Filed, Sept. 13, 1956; 8:46 a. m.]

PART 203—BRIDGE REGULATIONS

FLORIDA COAST LINE CANAL, LAKE MABEL TO BISCAYNE CREEK, FLORIDA

Pursuant to the provisions of section 5 of the River and Harbor Act of August 18, 1894 (28 Stat. 362; 33 U. S. C. 499), § 203.446a is hereby prescribed to govern the operation of the Hollywood Boulevard bridge across the Intracoastal Waterway at Hollywood, Florida, as follows:

§ 203.446a *Intracoastal Waterway, Fla.; Hollywood Boulevard bridge, Hollywood, Fla.* (a) During the period November 15 to May 15, inclusive, the owner of or agency controlling the Hollywood Boulevard bridge will not be required to open the drawspan between the hours of 10:00 a. m. and 6:00 p. m., except on half-hour intervals, on the hour and half-hour when the bridge shall be opened to allow all accumulated vessels to pass, and except as provided in paragraph (b) of this section.

(b) Upon receipt of proper signal the draw shall be opened at any time to allow the passage of a tow, sailing vessel, vessel in distress, and cruise boats operating on regular schedules.

(c) The owner of or agency controlling the bridge shall keep a copy of the regulations of this section conspicuously posted on both the upstream and downstream sides thereof in such manner that it can be easily read at any time.

[Regs., August 29, 1956, 823.1 (Jacksonville-Miami, Intracoastal WW)-ENGWO] (Sec. 5, 28 Stat. 362, as amended; 33 U. S. C. 499)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 56-7389; Filed, Sept. 13, 1956; 8:46 a. m.]

TITLE 35—PANAMA CANAL

Chapter I—Canal Zone Regulations

PART 24—SANITATION, HEALTH, AND QUARANTINE

JAPAN; FOOT-AND-MOUTH DISEASE OR RINDERPEST

Pursuant to the authority vested in the Governor by Rule 119qq of Executive Order No. 4314, as amended by Canal Zone Order No. 15 of July 15, 1948 (35 CFR 24.102), § 24.101a as amended by Governor's Regulations of October 14, 1952, 17 F. R. 10559; October 15, 1953, 18 F. R. 7177; November 13, 1953, 18 F. R. 7192; May 28, 1954, 19 F. R. 3419; January 10, 1955, 20 F. R. 411; and renumbered by Canal Zone Order No. 39, February 26, 1955, 20 F. R. 1392 (35 CFR 24.101a), is hereby further amended by adding Japan to the list of designated countries in which it is determined that foot-and-mouth disease or rinderpest exists.

(Sec. 1, 39 Stat. 527, as amended; 2 C. Z. Code 371, 372, 48 U. S. C. 1310)

Issued at Balboa Heights, Canal Zone, September 4, 1956.

W. E. POTTER,
Governor.

[F. R. Doc. 56-7401; Filed, Sept. 13, 1956; 8:48 a. m.]

TITLE 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

PART 13—ADMISSION, GUIDE, ELEVATOR AND AUTOMOBILE FEES

EDISON LABORATORY NATIONAL MONUMENT; ADMISSION FEE

Paragraph (a) of § 13.13, entitled *Admission fees; miscellaneous*, is amended by addition of the following area and admission fee therefor:

Edison Laboratory National Monument... .50

(Sec. 3, 39 Stat. 535, as amended; 16 U. S. C. 3)

FRED A. SEATON,
Secretary of the Interior.

SEPTEMBER 10, 1956.

[F. R. Doc. 56-7393; Filed, Sept. 13, 1956; 8:45 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

Subchapter F—Alaska Commercial Fisheries

PART 119—SOUTHEASTERN ALASKA AREA, EASTERN DISTRICT, SALMON FISHERIES

PART 120—SOUTHEASTERN ALASKA AREA, STIKINE DISTRICT, SALMON FISHERIES

ADDITIONAL FISHING TIME

Basis and purpose. On the basis of improved salmon runs in the Taku and Stikine districts of Southeastern Alaska, it has been determined that additional fishing time can be permitted.

Therefore, effective immediately upon publication in the FEDERAL REGISTER:

1. Section 119.3 is amended in paragraph (a) by deleting "Thursday" and substituting in lieu thereof "Friday".

2. Section 120.3a is amended by deleting "Thursday" and substituting in lieu thereof "Friday".

(Sec. 1, 43 Stat. 464, as amended; 460 U. S. C. 221)

Since immediate action is necessary, notice and public procedure on this amendment are impracticable (60 Stat. 237; 5 U. S. C. 1001 et seq.).

LESTER BAGLEY,
Acting Director.

SEPTEMBER 12, 1956.

[F. R. Doc. 56-7436; Filed, Sept. 12, 1956; 4:15 p. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[43 CFR Part 188]

ASPHALT LEASES

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that pursuant to the authority vested in the Secretary of the Interior by the act of June 28, 1944 (58 Stat. 463, 483-485), it is proposed to issue regulations implementing the said act so far as is necessary. One of the provisions of the act permits mineral leasing of asphalt deposits in certain lands situated in Oklahoma which the Choctaw and Chickasaw Nation of Indians in Oklahoma agreed to convey to the United States pursuant to the terms of a contract ratified by the act of June 24, 1948 (62 Stat. 596), under which equitable title to the lands and mineral deposits vested in the United States upon the appropriation of the purchase price by the act of May 24, 1949 (63 Stat. 76, 84).

The proposed regulations and form of lease [1] are set forth below.

Interested persons may submit, in triplicate, written comments, suggestions, or objections with respect to the proposed regulations or form to the Bureau of Land Management, Washington 25, D. C., within 30 days from date of publication of this notice in the FEDERAL REGISTER.

Dated: September 10, 1956.

FRED A. SEATON,
Secretary of the Interior.

A new Part 188, is added to Chapter 1, Title 43 of the Code of Federal Regulations, reading as follows:

PART 188—ASPHALT LEASES

GENERAL

Sec.
188.1 Authority to lease.
188.2 Lands applicable.
188.3 Definitions.
188.4 Area and limitation on holdings.
188.5 Qualifications of applicant.
188.6 Leases for lands disposed of with reservation of asphalt deposits.
188.7 Requirements when lands are within a withdrawal.

ASPHALT LEASES

188.8 Form of lease.
188.9 Lease bond.
188.10 Royalty and rental.
188.11 Minimum production.
188.12 Application for lease by competitive bidding.
188.13 Notice of lease offer.
188.14 Bid deposits.
188.15 Award of lease.
188.16 Modification and leasing of additional land or asphalt deposits.
188.17 Renewal leases.
188.18 Relinquishment of lease.
188.19 Cancellation of lease.

TRANSFERS OF LEASES

188.20 Transfers, including subleases.
188.21 Limitation on overriding royalties.

AUTHORITY: §§ 188.1 to 188.21, issued under sec. 32, 41 Stat. 450; 30 U. S. C. 189. Interpret or apply 58 Stat. 463, 483-485, 63 Stat. 76, 84.

GENERAL

§ 188.1 *Authority to lease.* The act of June 28, 1944 (58 Stat. 463, 483-485), authorizes the Secretary of the Interior to lease asphalt deposits in certain lands situated in Oklahoma, acquired under the provisions thereof.

§ 188.2 *Lands applicable.* The lands or asphalt deposits subject to the regulations in this part are those situated in Oklahoma which were (a) sold to the United States under the terms of a contract executed October 8, 1947, by and between the Secretary of the Interior and officials of the Choctaw and Chickasaw Nations of Indians in Oklahoma, which contract was ratified by the act of June 24, 1948 (62 Stat. 596), and (b) acquired when the purchase price provided in the contract was appropriated by the act of May 24, 1949 (63 Stat. 76, 84).

§ 188.3 *Definitions.* The following terms, as used in this part, or in any lease approved under the regulations in this part, shall have the meanings here given:

(a) *Secretary.* The Secretary of the Interior or any person duly authorized to exercise the powers vested in that officer.

(b) *Land Office.* The Land Office, Bureau of Land Management, Santa Fe, New Mexico, for lands covered by a lease or application therefor, situated in the State of Oklahoma.

(c) *Manager.* The Manager of the Land Office as defined in paragraph (b) of this section.

(d) *Mining Supervisor.* The Regional Mining Supervisor of the Geological Survey for the State in which the lands under lease or application therefor are situated.

§ 188.4 *Area and limitation on holdings.* Except where the rule of approximation applies, a lease may not include over 640 acres in reasonably compact form. No person, association or corporation may hold, either directly or indirectly, leases for an area that exceeds in the aggregate 2,560 acres.

§ 188.5 *Qualifications of applicant.* (a) As used in this section, "applicant" means an applicant for lease under § 188.12, the successful bidder to whom a lease is awarded under § 188.15, or an assignee or transferee under § 188.20.

(b) Leases may be issued to citizens of the United States, association of citizens, and corporations organized under the laws of the United States or of any State or Territory thereof.

(c) All applicants must file with the Manager statements and evidence as follows (unless previously filed, in which event a reference by serial number to the record and where it is filed, together with a statement as to any amendment, will be accepted):

(1) As to citizenship, whether native born or naturalized.

(2) If applicant is an association (including a partnership), it must submit a certified copy of the articles of association and the same showing as to the citizenship and holdings of its members as required of an individual.

(3) A corporation must submit a statement showing:

(i) The State in which it is incorporated.

(ii) That it is authorized to hold leases for asphalt deposits and that the person executing an instrument on behalf of the corporation is authorized to act in such matters.

(iii) The percentage of voting stock, of all the stock owned by aliens and of all the stock owned by those having addresses outside of the United States. When the stock owned by aliens is over 10 percent, additional information may be required.

(iv) The name, address, citizenship, and acreage holdings of any stockholder owning or controlling 20 percent or more of the stock of any class, of the corporation.

(4) That holdings do not exceed the acreage limitations specified in § 188.4.

§ 188.6 *Leases for lands disposed of with reservation of asphalt deposits.* Where lands included in a lease have

[1] Filed as part of the original document.

been or may be disposed of with reservation of the asphalt deposits, rights of surface use are subject to the provisions of the law under which such reservation was made. See the act of February 19, 1912 (37 Stat. 67), and the act of August 3, 1955 (69 Stat. 445), and the regulations thereunder, in Part 119 of this chapter.

§ 188.7 *Requirements when lands are within a withdrawal.* Where any part of the lands embraced in an application for asphalt lease is within a withdrawal which does not preclude disposition of the asphalt deposits, the head of the Government agency having control will be called upon for a report as to whether there is any objection to the granting of an asphalt lease. Where he recommends that a special stipulation be required to protect the interest of the United States, an appropriate stipulation may be included in the lease.

ASPHALT LEASES

§ 188.8 *Form of lease.* Leases shall be issued on Form 4–1320.[1]

§ 188.9 *Lease bond.* A compliance bond, in no event less than $1,000, with approved corporate surety (Form 4–1113), or the lessee's personal bond in similar amount (Form 4–1114), will be required prior to the issuance of a lease. Personal bonds must be secured by negotiable Federal securities in the amount of the bond. If the amount of the bond is fixed at $1,000, the lessee may, instead, furnish a bond on Form 4–1113 with two qualified individual sureties, as provided in § 191.13 of this chapter. The right is reserved at any time before or after issuance of the lease to require an increase of the amount of the bond, whether a corporate, personal or individual surety bond, in any case where the Bureau of Land Management deems it proper to do so.

§ 188.10 *Royalty and rental.* (a) The rate of royalty shall be fixed prior to the issuance of the lease but in no event shall it be less than 25 cents per ton of two thousand pounds of marketable production.

(b) Beginning with the date of the lease, annual rental payable in advance for each acre or part thereof covered by the lease shall be 25 cents for the first calendar year or fraction thereof, 50 cents for the second, third, fourth and fifth calendar years, respectively, and $1 for each calendar year thereafter during the continuance of the lease, such rental for any year to be credited against royalties accruing under the lease during the year for which the rental was paid.

§ 188.11 *Minimum production.* (a) Each lease will provide for the mining of asphalt deposits from the lands involved and the payment of royalty thereon to a value of not less than $1 an acre or fraction thereof each year, beginning with the sixth full calendar lease year, except when operations are interrupted by strikes, the elements, or casualties not attributable to the lessee or unless operations are suspended upon a showing that the lease can not be operated except at a loss because of unfavorable market conditions.

(b) Applications by lessees for relief from the production requirement of leases shall be filed, in triplicate, with the Mining Supervisor, who is authorized to grant such relief. A copy of each application shall be filed in the land office. Complete information must be furnished showing the necessity for such relief.

§ 188.12 *Application for lease by competitive bidding.* (a) An application for lease must be filed in duplicate in the land office. A filing fee of $10, which will be retained as a service charge in any event, must accompany the application. No specific form is required, but the application should include the following:

(1) The applicant's name and address.

(2) If the requested lands are surveyed, they should be described by legal subdivisions, showing meridian, township, range, and section; if not surveyed, by metes and bounds connected by courses and distance with some corner of the public land survey. When possible, the approximate legal subdivisions of unsurveyed lands should be stated.

(3) Evidence that the land is valuable for its asphalt content, with a statement as to the character, extent, and mode of occurrence of the asphalt deposits.

(b) The application must be signed by applicant, or by his attorney in fact, supported by the power of attorney.

(c) If it be found that the area applied for is not available for leasing, the applicant will be so informed.

§ 188.13 *Notice of lease offer.* Notice of offer of lands or deposits for lease will be by publication once a week for four consecutive weeks or for such other period as may be determined, in a newspaper of general circulation in the county in which the lands or deposits are situated. The notice will state the time and place of sale, whether the sale will be at public auction or by sealed bids, the description of the lands and the place where a detailed statement of the terms and conditions of the lease offer and the obligations of the successful bidder to pay for publication of that notice may be obtained. A copy of the notice will be posted in the land office during the period of publication. The detailed statement will set forth the terms and conditions of the sale, including the manner in which bids may be submitted, and statements (a) that the successful bidder will be required, prior to the issuance of a lease, to pay his proportionate share of the total cost of publication of the notice of lease offer, and that the successful bidder's share shall be that proportion of the total advertising cost, that the number of parcels of land awarded to him bears to the number of parcels for which high bidders are declared, and (b) that the Government reserves the right to reject any and all bids. If any bid be rejected, the deposit will be returned. The commission of any act of intimidation of bidders, or the combination of bidders to hinder or prevent bidding, is unlawful. See 18 U. S. C. 1860.

§ 188.14 *Bid deposits.* The successful bidder at a sale by public auction must deposit with the Manager of the Land Office, or the officer conducting the sale, on the date of the sale, and each bidder at a sale by sealed bids, must submit with his bid, certified check, cashier's check, bank draft, money order, or cash for one-fifth of the amount of the bid, and evidence of qualifications as required by § 188.5 (c).

§ 188.15 *Award of lease.* (a) Upon receipt of the high bid at, and at the close of, an oral auction, or the opening of the sealed bids, the Manager, subject to his right to reject any and all bids, will award the lease to the successful bidder, who will be notified accordingly. Four copies of the lease will be sent to the successful bidder, who will be required, within 30 days from receipt thereof, to execute them, pay the balance of the bonus bids, the first year's rental, and the cost of publication of the notice of lease offer as specified in § 188.13, and file a bond as required by § 188.9. If a bidder, after being awarded a lease, fails to execute it or otherwise comply with the applicable regulations, his deposit will be forfeited and deposited in the general fund of the Treasury of the United States. (See act of June 28, 1944, 58 Stat. 463, 485). If the lease awarded to the successful bidder is executed by an attorney acting in behalf of the bidder, the lease must be accompanied by evidence that the bidder authorized the attorney to execute the lease.

(b) If the bidder dies before the lease is issued, the lease will be issued to the executor or administrator of the estate if probate of the estate has not been completed; if probate has been completed, or is not required, to the heirs or devisees; and if there are minor heirs or devisees, to their legal guardian or trustee in his name, provided there is filed in all cases the following information:

(1) Where probate of the estate has not been completed:

(i) Evidence that the person, who as executor or administrator submits forms of lease and bond, has authority to act in that capacity and to sign such forms.

(ii) Evidence that the heirs or devisees are the heirs or devisees of the deceased lessee and are the only heirs or devisees of the deceased.

(iii) A statement over the signature of each heir or devisee concerning citizenship and holdings similar to that required by § 188.5 (c) (1) and (4).

(2) Where the executor or administrator has been discharged or no probate proceedings are required:

(i) A certified copy of the will or decree of distribution, if any, and if not, a statement signed by the heirs that they are the only heirs of the lessee and citing the provisions of the law of the deceased's last domicile showing no probate is required.

(ii) A statement over the signature of each of the heirs or devisees with reference to citizenship and holding similar to that required by § 188.5 (c) (1) and

[1] A copy of this, as well as of every other form mentioned in this part, may be obtained from the Land Office, Santa Fe, New Mexico, or from the Director, Bureau of Land Management, Washington 25, D. C.

(4), except that if the heir or devisee is a minor, the statement must be over the signature of the guardian or trustee.

(3) Where there is a legal guardian or trustee:

(i) A certified copy of the court order authorizing the guardian or trustee to act as such and to fulfill in behalf of the minor or minors all obligations of the lease or arising thereunder; statements by the guardian or trustee as to the citizenship and holding of each of the minors and as to his own citizenship and holdings, including his holdings for the benefit of other minors similar to that required by § 188.5 (c) (1) and (4).

§ 188.16 *Modification and leasing of additional lands or asphalt deposits.* A lessee may obtain modification of his lease to include asphalt lands or asphalt deposits contiguous to those embraced in his lease if the Manager shall determine, after consultation with the Mining Supervisor, that it will be to the advantage of the lessee and the United States, but in no event shall the area embraced in such modified lease exceed in the aggregate 640 acres, except where the rule of approximation applies. The lessee must file his application for modification in duplicate in the land office describing the additional land desired, the reasons for and the advantage to the lessee of such modification. Upon determination by the Manager that the modification is justified and the interest of the United States is protected, the lease will be modified without competitive bidding to include such part of the land or deposits as he shall prescribe. If, however, it is determined that the additional lands or deposits can be developed as part of an independent operation or that there is a competitive interest in them, they may be offered as provided in § 188.13. Each application for modification must be accompanied by a filing fee of $10 which will not be returnable.

§ 188.17 *Renewal leases.* An application for a renewal lease must be filed in duplicate in the land office within 90 days prior to the expiration of the lease term. Thereafter, the lessee will be notified of the terms and conditions to be prescribed in the renewal lease. Unless the lessee filed written objections to the proposed terms, or files a relinquishment of the lease within 30 days after receipt of such notice, he will be deemed to have agreed to such terms and to the renewal of the lease. Prior to the issuance of a renewal lease, the lessee will be required to submit a satisfactory bond as prescribed in § 188.9. Each application for renewal must be accompanied by a filling fee of $10 which will not be returnable.

§ 188.18 *Relinquishment of lease.* Upon a satisfactory showing that the public interest will not be impaired, the lessee may surrender the entire lease or any legal subdivision thereof. A relinquishment must be filed in duplicate in the land office. Upon its acceptance it shall be effective as of the date it is filed, subject to the continued obligation of the lessee and his surety to make payment of all accrued rental and royalties and provide for the preservation of any mines or productive works or permanent improvements on the lands relinquished in accordance with the regulations and terms of the lease.

§ 188.19 *Cancellation of lease.* If the lessee fails to comply with the general regulations in force at the date of the lease, or defaults with respect to any of the terms, covenants, or stipulations of the lease, and such failure or default continues for 30 days after service of written notice thereof by the lessor, then the lessor may bring appropriate court proceedings to forfeit and cancel the lease as provided in section 31 of the Mineral Leasing Act of February 25, 1920, as amended (30 U. S. C. 188). A waiver of any particular cause of forfeiture shall not prevent the cancellation and forfeiture of the lease for any other cause, or for the same cause occurring at any other time.

TRANSFERS OF LEASES

§ 188.20 *Transfers, including subleases.* (a) Leases may be transferred in whole or in part. The approval of a transfer of part of the land in a lease will create a new lease for the transferred portion. A discovery made before or after the partial assignment, either on the retained or the assigned portions will not inure to the benefit of the other, nor will approval of a transfer extend the renewal periods of the lease. Transfers, whether by direct assignments, operating agreements, subleases, working or royalty interests, or otherwise, must be filed for approval in duplicate at the land office within 90 days after execution. Evidence of the qualifications of the assignee or transferee to hold the lease, as required by § 188.5 must be submitted simultaneously. Before a transfer of a lease will be approved, the transferee must submit a new bond, or the consent of the surety on the lease bond to the substitution of the transferee as principal thereon, and the lease account must be in good standing. If the transfer is for part of the land only, it must be for a legal subdivision and (1) the consent of the surety to the transfer and its agreement to remain bound as to the interest retained by the lessee must be submitted, as well as (2) a new bond with the transferee as principal covering the portion of the lands transferred. A transfer will take effect the first day of the month following its approval, or if the transferee requests, in writing, the first day of the month of the approval.

(b) An application for approval of any instrument transferring a lease, or interest therein, must be accompanied by a service fee of $10. An application not accompanied by such a fee will not be accepted. The fee will not be returned even though the application is later withdrawn or rejected.

(c) No transfer will be approved if the transferee is not qualified to take and hold a lease or if his bond is insufficient. A minor, except a minor heir or devisee of a lease, is not qualified to hold a lease and a transfer to a minor will not be approved.

(d) In order for the heirs or devisees of a deceased holder of a lease, an operating agreement, or a royalty interest in a lease, to be recognized by the Department as the holder of the lease, agreement or interest, there must be furnished the appropriate showing required under § 188.15 (b).

(e) The assignor or sublessor and his surety will continue to be responsible for the performance of any obligation under the lease until the assignment or sublease is approved. If the assignment or transfer is not approved, their obligations to the United States shall continue as though no such assignment or transfer had been filed for approval. After approval the assignee or sublessee and his surety will be responsible for the performance of all lease obligations notwithstanding any terms in the assignment or sublease to the contrary.

§ 188.21 *Limitation on overriding royalties.* An overriding royalty interest shall not be created by assignment or otherwise exceeding 50 percent of the rate of royalty first payable to the United States under the lease or an overriding royalty interest which when added to any other overriding royalty interest exceeds that percentage, excepting that where an interest in the leasehold, or operating agreement is assigned, the assignor may retain an overriding royalty interest in excess of the above limitation if he shows to the satisfaction of the Bureau of Land Management, that he has made substantial investments for improvements on the land covered by the assignment.

[F. R. Doc. 56-7395; Filed, Sept. 13, 1956; 8:47 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR Parts 711, 712, 713]

[Administrative Order 467]

PUERTO RICO

NOTICE OF RESIGNATION AND APPOINTMENT OF EMPLOYER MEMBER OF INDUSTRY COMMITTEES

James A. Milling, a resident of the State of Indiana, having resigned from Industry Committees Nos. 24-A, 24-B, and 24-C for Puerto Rico, the Secretary of Labor, pursuant to authority under the Fair Labor Standards Act of 1938 (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), hereby appoints Ira B. Stiefel, a resident of the State of Pennsylvania, to serve in his stead on such Committees as a representative of employers.

Signed at Washington, D. C. this 8th day of September 1956.

JAMES P. MITCHELL,
Secretary of Labor.

[F. R. Doc. 56-7409; Filed, Sept. 13, 1956; 8:50 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Office of Territories

[Alaska Public Works Memorandum 8]

DIRECTOR, ALASKA PUBLIC WORKS

DELEGATION OF AUTHORITY TO NEGOTIATE CONTRACTS WITH ARCHITECTURAL AND ENGINEERING FIRMS

SECTION 1. The Director, Alaska public Works, Division of Alaskan Affairs, Office of Territories, is hereby authorized for the period ending September 1, 1957, to negotiate, without advertising, under subdivision 302 (c) (4) of the Federal Property and Administrative Services Act of 1949, as amended (66 Stat. 594, 41 U. S. C. sec. 252 et seq.) contracts for the services of architectural and engineering firms in connection with the administration of the Alaska Public Works Act (63 Stat. 627, 48 U. S. C., sec. 486 et seq.) as amended (68 Stat. 483).

SEC. 2. The authority granted in Section 1 of this memorandum shall be exercised in accordance with the applicable limitations and requirements of the Federal Property and Administrative Services Act, particularly sections 304 and 307, and in accordance with policies, procedures and controls prescribed by the General Services Administration.

SEC. 3. The Director, Alaska Public Works, Division of Alaskan Affairs, Office of Territories, shall not redelegate or authorize redelegation of the authority granted in section 1 of this memorandum.

SEC. 4. This memorandum shall be effective immediately upon publication in the FEDERAL REGISTER and shall supersede and cancel Alaska Public Works Memorandum No. 6 dated September 23, 1955.

ANTHONY T. LAUSI,
Director.

[F. R. Doc. 56-7394; Filed, Sept. 13, 1956; 8:47 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

BOARD OF TRADE OF KANSAS CITY

DESIGNATION AS CONTRACT MARKET FOR SOYBEANS UNDER COMMODITY EXCHANGE ACT

Pursuant to the authorization and direction contained in the Commodity Exchange Act, as amended (7 U. S. C. 1-17a), I hereby designate The Board of Trade of Kansas City, Missouri, as a contract market for soybeans. The said board of trade has applied for such designation and has complied with the requirements imposed by section 5 of said act as a condition precedent to such designation.

This designation is subject to suspension or revocation in accordance with the provisions of said act. For the purpose of such suspension or revocation, this designation and the order issued by the Secretary of Agriculture on May 5, 1923, designating the said board of trade as a contract market under the provisions of the Grain Futures Act (42 Stat. 998), together with the order issued by the Secretary of Agriculture on September 14, 1936, designating the said board of trade as a contract market for mill feeds under the provisions of the Commodity Exchange Act, as amended, shall constitute a single designation.

[SEAL] TRUE D. MORSE,
Acting Secretary.

SEPTEMBER 10, 1956.

[F. R. Doc. 56-7388; Filed, Sept. 13, 1956; 8:45 a. m.]

DEPARTMENT OF COMMERCE

Civil Aeronautics Administration

[Amdt. 11]

ORGANIZATION AND FUNCTIONS

CHANGE IN ADDRESS OF AIRPORT DISTRICT OFFICE

In accordance with the public information requirements of the Administrative Procedure Act, section 21 (b) of the description of Organization and Functions of the Civil Aeronautics Administration (20 F. R. 4663) is hereby amended to include the following change in the address of an Airport District Office:

Region 1 is amended by substituting "Columbus, Ohio, New Post Office Building, 85 Marconi Boulevard——" for "Columbus, Ohio, Administration Building, Port Columbus Airport——".

[SEAL] S. A. KEMP,
Acting Administrator of Civil Aeronautics.

[F. R. Doc. 56-7391; Filed, Sept. 13, 1956; 8:46 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 8172]

SWISSAIR, SWISS AIR TRANSPORT CO., LTD.

NOTICE OF HEARING

In the matter of the application of SWISSAIR, Swiss Air Transport Company Limited for an amendment of its foreign air carrier permit with respect to foreign air transportation between a point or points in Switzerland and the terminal point New York, New York, U. S. A.

Notice is hereby given that a hearing in the above-entitled matter is assigned to be held on October 10, 1956, at 1:30 p. m., e. d. s. t., in Room 1512, Temporary Building No. 4, Seventeenth Street and Constitution Avenue NW., Washington, D. C., before Examiner Joseph L. Fitzmaurice.

Dated at Washington, D. C., September 10, 1956.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 56-7411; Filed, Sept. 13, 1956; 8:50 a. m.]

[Docket No. 2564]

CHICAGO AND SOUTHERN AIR LINES; REOPENED DELTA C & S MAIL RATE CASE

NOTICE OF PREHEARING CONFERENCE

Notice is hereby given that a prehearing conference in the above-entitled proceeding on the question of the proper rate level for the international operations of Chicago and Southern Air Lines for the period December 16, 1950, through July 31, 1952, is assigned to be held on September 24, 1956, at 10 a. m., e. d. s. t., in Room 1512, Temporary Building No. 4, Washington, D. C., before Examiner Edward T. Stodola.

Dated at Washington, D. C., September 11, 1956.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 56-7412; Filed, Sept. 13, 1956; 8:50 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 11288 etc.; FCC 56-85]

PONCE DE LEON BROADCASTING CO., INC., OF P. R. ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Ponce de Leon Broadcasting Co., Inc., of P. R., Mayaguez, Puerto Rico, Docket No. 11288, File No. BPCT-1906; Sucesion Luis-Pirallo Castellanos, Mayaguez, Puerto Rico, Docket No. 11811, File No. BPCT-2158; Department of Education of Puerto Rico, Mayaguez, Puerto Rico, Docket No. 11812, File No. BPCT-2159; for construction permits for new Television Stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 5th day of September 1956;

The Commission having under consideration the above-captioned applications, each requesting a construction permit for a new television broadcast station to operate on Channel 3 in Mayaguez, Puerto Rico; and

It appearing that the above-captioned applications are mutually exclusive in that operation by more than one of the three applicants would result in mutually destructive interference; and

It further appearing, that Ponce de Leon Broadcasting Co., Inc. of P. R. is already in hearing status pursuant to an order adopted by the Commission on February 23, 1955; that the applications of Sucesion Luis-Pirallo Castellanos and Department of Education of Puerto Rico were accepted for filing by the Commission pursuant to a Memorandum Opinion and Order adopted July 11, 1956 (FCC 56-654); and

It further appearing that pursuant to section 309 (b) of the Communications Act of 1934, as amended, the above-named applicants were advised by letters of the fact that their applications were

mutually exclusive, of the necessity for a hearing and of all objections to their applications; and were given an opportunity to reply; and

It further appearing that upon due consideration of the above-captioned applications, the amendments filed thereto, and the replies to the above letters, the Commission finds that Sucesion Luis-Pirallo Castellanos and Department of Education of Puerto Rico are legally, technically, financially and otherwise qualified to construct, own and operate a television broadcast station; that, as found previously, Ponce de Leon Broadcasting Co., Inc., of P. R., is legally, technically and financially qualified to construct, own and operate a television broadcast station, and is otherwise qualified except as to issues "1" and "2" below;

It is ordered, That pursuant to section 309 (b) of the Communications Act of 1934, as amended, the above-captioned applications of Sucesion Luis-Pirallo Castellanos and Department of Education of Puerto Rico are designated for hearing and consolidated with the application of Ponce De Leon Broadcasting Co., Inc., of P. R. already in hearing which hearing is presently scheduled to commence at 10:00 a. m. on the 29th day of October 1956 upon the following issues:

1. To determine whether the program service proposed to be rendered by Ponce De Leon Broadcasting Co., Inc., of P. R. would meet the requirements of the community to be served.

2. To determine whether a grant to Ponce De Leon Broadcasting Co., Inc. of P. R. of authority to maintain main studios outside Mayaguez would be consistent with the provisions of § 3.613 of the Commission's rules.

3. To determine on a comparative basis which of the operations proposed in the above-captioned applications would best serve the public interest, convenience and necessity in the light of record made with respect to the significant differences among the applications as to:

a. The background and experience of each of the above-named applicants having a bearing on its ability to own and operate the proposed television station.

b. The proposals of each of the above-named applicants with respect to the management and operation of the proposed station.

c. The programming service proposed in each of the above-entitled applications.

It is further ordered, That the issues in the above-entitled proceeding may be enlarged by the Examiner, on his motion or on petition properly filed by a party to the proceeding and upon a sufficient allegation of fact in support thereof, by the addition of the following issue:

To determine whether the funds available to the applicants will give reasonable assurance that the proposals set forth in the application will be effectuated.

It is further ordered, That this hearing order hereby supersedes the order adopted on February 23, 1955 in Docket No. 11288 (FCC 55-235).

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7416; Filed, Sept. 13, 1956; 8:51 a. m.]

[Docket No. 11518 etc.; FCC 56-854]

AMERICAN TELEPHONE AND TELEGRAPH CO. AND WESTERN UNION TELEGRAPH CO.

ORDER AMENDING ISSUES

In the matter of American Telephone and Telegraph Company, charges, classifications, regulations and practices for and in connection with Multiple Private Line Services and Channels, Docket No. 11518; American Telephone and Telegraph Company, charges, classifications, regulations and practices for and in connection with private line services and channels, Docket No. 11645; The Western Union Telegraph Company, charges, classifications, regulations, and practices for and in connection with Domestic Leased Facility Service, Docket No. 11646.

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 6th day of September 1956;

The Commission having under consideration Transmittal No. 5231 and certain new tariff schedules filed therewith on July 30, 1956, by the American Telephone and Telegraph Company (AT&T), effective September 1, 1956, establishing new rates and regulations for multiple private line services and channels furnished for communication by means of telephone, teletypewriter, or Morse equipment, for transmission of picture material by means of telephotograph equipment provided by the customer, and for operation of remote metering, supervisory control or miscellaneous signaling devices provided by the customer, said tariff schedules being designated as Tariff FCC No. 231; and also having under consideration the record of the proceedings in Docket No. 11518—an investigation of the lawfulness under the Communications Act of 1934, as amended, of AT&T Tariff FCC No. 227 and related tariffs, also providing for new rates and regulations for multiple private line services and channels; the Commission's action of August 30, 1956 granting an application of AT&T for Special Permission to cancel said Tariff FCC No. 227, effective September 1, 1956; a Protest filed on August 17, 1956 by The Western Union Telegraph Company against the new Tariff FCC No. 231 requesting suspension and investigation thereof; and a reply to said protest filed by AT&T on August 24, 1956; and also having under consideration the Commission's Order of March 7, 1956, providing for a general investigation into the lawfulness of effective tariff schedules of AT&T applicable to private line services and channels (Docket No. 11645) and effective tariff schedules of The Western Union Telegraph Company applicable to leased facility services (Docket No. 11646) and directing that the proceedings therein be consolidated with the proceedings in Docket No. 11518;

It appearing that Tariff FCC No. 231 is intended to replace Tariff FCC No. 227, and to make it possible for the public and the Government to receive as soon as practicable the benefit of the reduced charges that the multiple channel offering will provide; that many of the features of the new offering proposed in Tariff FCC No. 231 are the same as those included in Tariff FCC No. 227 and that the information submitted to the Commission in support of the latter tariff applies to a large extent to the filing of Tariff FCC No. 231; that the rates for multiple private line services and channels contained in Tariff FCC No. 231 are related directly to the rates for the individual private line services and channels contained in presently effective tariffs which are subject to investigation in Docket No. 11645; and that in the event that future changes are made in the individual service rates, it is expected that corresponding changes would be made in the multiple channel rates;

It further appearing that questions are presented as to the lawfulness, under the provisions of the Communications Act of 1934, as amended, of AT&T Tariff FCC No. 231 and that such questions, together with the questions raised by the aforementioned protest of The Western Union Telegraph Company, should be resolved as part of and in connection with the aforementioned general investigation of the lawfulness of presently effective tariff schedules applicable to private line services and channels in Dockets Nos. 11645 and 11646;

It further appearing that pursuant to the aforementioned Special Permission issued by the Commission on August 30, 1956, AT&T has cancelled its Tariff FCC No. 227 and, consequently, further proceedings with respect to Docket No. 11518 are unnecessary;

It is ordered, That the proceedings in Docket No. 11518, herein, are hereby terminated and dismissed; and that the record of the proceedings in Docket No. 11518 is hereby made part of the record of the proceedings in Dockets Nos. 11645 and 11646;

It is further ordered, That pursuant to the provisions of sections 201, 202, 203, 204, 205 and 403 of the Communications Act of 1934, as amended, the issues in Docket Nos. 11645 and 11646, as specified in the Commission's Order of March 7, 1956, herein, are hereby amended to include consideration and investigation of the lawfulness under the Communications Act of 1934, as amended, of the charges, classifications, regulations and practices contained in AT&T Tariff FCC No. 231;

It is further ordered, That the issues in Dockets Nos. 11645 and 11646 are further amended to include the following:

The effects of the tariff schedules subject to investigation herein on competi-

tion in the field of private line communications services and channels, and whether any such effects render any of the charges, classifications, regulations or practices contained in such tariff schedules unjust or unreasonable within the meaning of section 201 (b) of the Communications Act of 1934, as amended, or otherwise unlawful.

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7417; Filed, Sept. 13, 1956; 8:51 a. m.]

[Docket No. 11685 etc.; FCC 56-852]

POLK RADIO, INC., ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Polk Radio, Incorporated, Lakeland, Florida, Docket No. 11685, File No. BP-10136; Duane F. McConnell, Winter Haven, Florida, Docket No. 11686, File No. BP-10400; E. D. Covington, Jr., Winter Garden, Florida, Docket No. 11813, File No. BP-10571; for construction permits.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 5th day of September 1956;

The Commission having under consideration the above-captioned application of E. D. Covington, Jr. for a construction permit for a new standard broadcast station at Winter Garden, Florida, to operate on 1330 kilocycles with a power of 500 watts, daytime only, File No. BP-10571;

It appearing that the applicant is legally, technically, financially, and otherwise qualified except as may appear from the issues indicated below, to operate his proposed station, but that operation of the station as proposed would involve mutually destructive interference with the above-captioned proposal of Polk Radio, Incorporated, for a new standard broadcast station at Lakeland, Florida, to operate on 1330 kilocycles with a power of 1 kilowatt, daytime only, File No. BP-10136, Docket No. 11685; and

It further appearing that said application of Polk Radio, Incorporated, and the above-captioned application of Duane F. McConnell for a new standard broadcast station at Winter Haven, Florida, to operate on 1320 kilocycles with a power of 500 watts, daytime only, File No. BP-10400, Docket No. 11686 are mutually exclusive and were designated for hearing by an order adopted on April 25, 1956, and released on May 1, 1956; and

It further appearing that the above-captioned application of E. D. Covington, Jr., was filed on May 11, 1956, within ten days of the public notice of the Commission's said order, and is, therefore, entitled to be consolidated in the proceeding in Dockets Nos. 11685 and 11686 pursuant to § 1.724 (b) of the Commission's rules; and

It further appearing that pursuant to section 309 (b) of the Communications Act of 1934, as amended, E. D. Covington, Jr., was advised by letter dated July 13, 1956, of the foregoing; and

It further appearing that a timely reply was filed by E. D. Covington, Jr.; and

It further appearing that after consideration of the reply the Commission is of the opinion that a hearing on the application of E. D. Covington, Jr., is necessary and that it should be consolidated in the proceeding in Dockets Nos. 11685 and 11686;

It is ordered, That pursuant to section 309 (b) of the Communications Act of 1934, as amended, the said application of E. D. Covington, Jr., is designated for hearing and is consolidated in the proceeding ordered on April 25, 1956, in Dockets Nos. 11685 and 11686, upon the issues specified in said Order, which are as follows:

1. To determine the areas and populations which would receive primary service from each of the proposed operations, and the availability of other primary service to such areas and populations.

2. To determine in the light of section 307 (b) of the Communications Act of 1934, as amended, which of the operations proposed in the above-captioned applications would best provide a fair, efficient and equitable distribution of radio service.

3. To determine, in the light of the evidence adduced pursuant to the foregoing issues, which, if any, of the applications should be granted.

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7418; Filed, Sept. 13, 1956; 8:51 a. m.]

[Docket No. 11791; FCC 56M-831]

RADIO MOUNT KISCO, INC.

ORDER CONTINUING HEARING

In re application of Radio Mount Kisco, Inc., Mt. Kisco, New York, Docket No. 11791, File No. BP-10344; for construction permit.

It is ordered, This 11th day of September 1956, that Herbert Sharfman, in lieu of Thomas H. Donahue, will preside at the hearing in the above-entitled proceeding; *And, it is further ordered*, That the said hearing is continued from September 28, 1956 to October 2, 1956, and will be held in Washington, D. C.

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7419; Filed, Sept. 13, 1956; 8:52 a. m.]

[Docket No. 11806; FCC 56M-824]

INDIAN CITY BROADCASTING CO.

ORDER SCHEDULING HEARING

In re application of Odis L. Echols, Sr. and Odis L. Echols, Jr., d/b as Indian City Broadcasting Company, Anadarko, Oklahoma, Docket No. 11806, File No. BP-10413; for construction permit.

It is ordered, This 7th day of September 1956, that Herbert Sharfman will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on October 31, 1956, in Washington, D. C.

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7420; Filed, Sept. 13, 1956; 8:52 a. m.]

[Docket Nos. 11814, 11815; FCC 56-853]

GREAT WESTERN RADIO CO. AND JOHN JACK BENTLEY

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of George Wayne Inglis and Elvis Leo Roberts, d/b as Great Western Radio Company, Midland, Texas, Docket No. 11814, File No. BP-10466; John Jack Bentley, Stanton, Texas, Docket No. 11815, File No. BP-10613; for construction permits.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 5th day of September 1956;

The Commission having under consideration the above-captioned applications of George Wayne Inglis and Elvis Leo Roberts, d/b as Great Western Radio Company, for a construction permit for a new standard broadcast station at Midland, Texas, to operate on 1580 kilocycles with a power of 1 kilowatt, daytime only, File No. BP-10466; and of John Jack Bentley for a construction permit for a new standard broadcast station at Stanton, Texas, to operate on 1600 kilocycles with a power of 1 kilowatt, daytime only, File No. BP-10613;

It appearing that the Great Western Radio Company is financially qualified, and each of the applicants is legally, technically and otherwise qualified, except as may appear from the issues specified below, to construct and operate its proposed station, but that operation of both stations as proposed would result in mutually destructive interference, and that insufficient information has been submitted from which to make a determination of whether John Jack Bentley is financially qualified to construct and operate his proposed station; and

It further appearing that pursuant to section 309 (b) of the Communications Act of 1934, as amended, the subject applicants were advised by letter dated July 27, 1956, of the aforementioned deficiencies and that the Commission

was unable to conclude that a grant of either application would be in the public interest; and

It further appearing that a timely reply was received from each applicant; and

It further appearing that after consideration of the replies the Commission is of the opinion that a hearing on the applications is necessary;

It is ordered, That pursuant to section 309 (b) of the Communications Act of 1934, as amended, the said applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine the areas and populations which would receive primary service from each of the proposed operations, and the availability of other primary service to such areas and populations.

2. To determine whether John Jack Bentley is financially qualified to construct and operate his proposed station.

3. To determine in the light of section 307 (b) of the Communications Act of 1934, as amended, which of the operations proposed in the above-described applications would better provide a fair, efficient and equitable distribution of radio service.

4. To determine, in the light of the evidence adduced pursuant to the foregoing issues whether a grant of either of the two applications would serve the public interest, convenience and necessity.

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7421; Filed, Sept. 13, 1956; 8:52 a. m.]

[Docket Nos. 11816, 11817; FCC 56-856]

HOWARD C. NIESEN AND SOUTH GATE DEVELOPMENT CO., INC.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Howard C. Niesen, Sarasota, Florida, Docket No. 11816, File No. 684-C2-P-56; South Gate Development Company, Inc., Sarasota, Florida, Docket No. 11817, File No. 1327-C2-P-56; for construction permits for stations in the Domestic Public Land Mobile Radio Service.

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 6th day of September 1956;

The Commission having under consideration the above-entitled applications for two-way stations in the Domestic Public Land Mobile Radio Service at Sarasota, Florida; and

It appearing that, Mr. Niesen and South Gate Development Company, Inc. have each expressed a belief that the authorization of two such facilities at Sarasota, Florida would not serve the public interest, convenience or necessity because it is not economically practical to operate two such services in that area; and

It is further appearing, that, pursuant to section 309 (b) of the Communications Act of 1934, as amended, the above-named applicants were advised by letters as to the reasons why the applications cannot be granted without a hearing; and were given an opportunity to reply; and

It further appearing that, upon due consideration of the above-entitled applications, and the replies to the above letters, the Commission finds that, under section 309 (b) of the Communications Act of 1934, as amended, a hearing is required; and

It further appearing that, each of the above-named applicants in legally, financially and technically qualified to construct, own and operate a two-way station in the Domestic Public Land Mobile Radio Service, as proposed in the instant applications;

It is ordered, That, pursuant to the provisions of section 309 (b) of the Communications Act of 1934, as amended, the above-entitled applications are designated for hearing in a consolidated proceeding to be held at the offices of the Commission in Washington, D. C., commencing at 10:00 a. m. on the 8th day of November 1956, upon the following issues:

1. To determine the area and population which may be expected to receive service from each of the proposed stations and the need for such service in the area proposed to be served.

2. To determine, in the light of the evidence adduced on Issue No. 1, whether any public benefit or disadvantage will be derived from the establishment of more than one facility in this service in the area proposed to be served.

3. To determine the facts with respect to the proposed facilities, personnel, rates, regulations, practices and services of each of the applicants.

4. To determine, in the light of the evidence adduced on the foregoing issues, whether public interest, convenience or necessity would be served by a grant of one or both of the applications.

It is further ordered, That, the Chief, Common Carrier Bureau, is made a party to the proceeding herein.

Released: September 11, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-7422; Filed, Sept. 13, 1956; 8:52 a. m.]

FEDERAL POWER COMMISSION

[Project No. 2165]

ALABAMA POWER CO.

NOTICE OF APPLICATION FOR LICENSE

SEPTEMBER 10, 1956.

Public notice is hereby given that Alabama Power Company, of Birmingham, Alabama, has filed application under the Federal Power Act (16 U. S. C. 791a-825r) for license for proposed water-power Project No. 2165 to be located on the Black Warrior River and on Sipsey Fork of Black Warrior River in Cullman, Tuscaloosa, Walker, and Winston Counties, Alabama, and to consist of (1) an earth and rock fill dam at the Upper New Hope dam site on Sipsey Fork creating a reservoir with 500,000 acre-feet of usable power storage, and 810,000 acre-feet of flood control storage, a saddle spillway, intake, penstocks, tailrace, substation, powerhouse with initial installation of one unit of 80,000 kilowatts and provision for installation of another similar unit, and appurtenant facilities and (2) a powerhouse at the west end of existing United States Lock and Dam No. 17 on the Black Warrior River with initial installed capacity of one unit of 22,500 kilowatts and provision for installation of another similar unit, together with intake, penstocks, tailrace, substation and appurtenant facilities.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last date upon which protests or petitions may be filed is October 22, 1956. The application is on file with the Commission for public inspection.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 56-7396; Filed, Sept. 13, 1956; 8:47 a. m.]

[Docket Nos. G-10588, G-10538]

KANSAS-NEBRASKA NATURAL GAS CO. INC. AND NORTHERN NATURAL GAS CO.

CONSOLIDATING PROCEEDINGS AND DATE OF HEARING

SEPTEMBER 11, 1956.

Take notice that the above related matters should be heard on a consolidated record and disposed of as promptly as possible and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on October 15, 1956 at 10:00 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street, NW., Washington, D. C. concerning the matters involved in and the issues presented by such applications.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 56-7403; Filed, Sept. 13, 1956; 8:49 a. m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

SEPTEMBER 11, 1956.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15

days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 32614: *Lumber—Southeastern and Mississippi Valley territories to Kansas.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on lumber and related articles, carloads from points in Alabama, Florida, Georgia, Kentucky, Louisiana (east of the Mississippi River), Mississippi and Tennessee to points in Kansas.

Grounds for relief: Grouping and circuitous routes.

Tariff: Supplement 177 to Agent Spaninger's I. C. C. 594.

FSA No. 32615: *Lumber—Southeastern and Carolina territories to Kansas.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on lumber and related articles, carloads from points in Alabama, Florida, Georgia, Kentucky, North Carolina, South Carolina, Tennessee, and Virginia to points in Kansas.

Grounds for relief: Grouping and circuitous routes.

Tariff: Supplement 152 to Agent Spaninger's I. C. C. 1101.

FSA No. 32616: *Fillers, paper, and paper articles—western and northern points to western and southern points.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on egg case fillers or partitions, carloads, also paper and paper articles, carloads from specified points in Illinois and Western trunkline territories to specified points in western trunkline and southern territories.

Grounds for relief: Short-line distance formulas and circuitous routes.

Tariffs: Supplement 33 to Agent Prueter's tariff I. C. C. A-4082 and two other tariffs.

FSA No. 32617: *Plaster and related articles—Colorado to W. T. L. territory.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on plaster, and related articles, carloads and Gypsum wallboard, and related articles, carloads (1) from Adobe, Colo., to points in western trunkline territory, as to rates on plaster, and (2) from Adobe, Loveland, Portland, and Wilds Spur, Colo., to destinations in Colorado, Kansas, Nebraska and Wyoming, as to rates on gypsum wallboard.

Grounds for relief: Short-line distance formulas and circuitous routes—market-truck-water competition.

Tariff: Supplement 67 to Agent Prueter's I. C. C. A-3917.

FSA No. 32618: *Sand—West Virginia to southern points.* Filed by C. W. Boin, Agent, for interested rail carriers. Rates on sand, ground or pulverized, carloads from Berkeley Springs and Hancock, Md., and Gore, Va., to specified points in Alabama, Georgia, Mississippi, North Carolina, South Carolina, and Tennessee.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 23 to Agent Boin's tariff I. C. C. A-1079.

FSA No. 32619: *Potash—Carlsbad and Loving, N. Mex., to Wateree, S. C.* Filed by The Atchison, Topeka and Santa Fe Railway Company for itself and interested rail carriers. Rates on potash, carloads from Carlsbad and Loving, N. Mex., to Wateree, S. C.

Grounds for relief: Circuitous routes.

Tariff: Supplement 110 to Atchison, Topeka and Santa Fe Ry. Company's tariff I. C. C. 14478.

FSA No. 32620: *Molasses—Spearmint, Utah to Illinois, Missouri and Wisconsin.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on beet sugar final molasses, tank-car loads from Spearmint, Utah to Chicago, Crescent, Crystal Lake, Decatur, Pekin, Peoria, Ill., Milwaukee, Wis., and St. Louis, Mo.

Grounds for relief: Market competition and circuitous routes.

Tariff: Supplement 29 to Agent Prueter's tariff I. C. C. A-4123.

By the Commission.

[SEAL] HAROLD D. MCCOY, *Secretary.*

[F. R. Doc. 56-7397; Filed, Sept. 13, 1956; 8:48 a. m.]

HOUSING AND HOME FINANCE AGENCY

Office of the Administrator

AREA DIRECTOR OF URBAN RENEWAL, PUERTO RICO AREA OFFICE

AMENDMENT OF REDELEGATION OF AUTHORITY WITH RESPECT TO SLUM CLEARANCE AND URBAN RENEWAL PROGRAM

The redelegation of authority with respect to the slum clearance and urban renewal program effective as of February 18, 1955 (20 F. R. 1061, 2-18-55), is hereby amended in the following respects:

(1) In subparagraph numbered 1, by deleting the term "$4,000" and substituting the term "$10,000".

(2) Subparagraph numbered 3 is amended to read as follows:

3. Approve Preliminary Project Reports and execute Statements of Continued Obligation.

Effective as of the 14th day of September 1956.

[SEAL] R. L. STEINER, *Acting Urban Renewal Commissioner.*

[F. R. Doc. 56-7410; Filed, Sept. 13, 1956; 8:50 a. m.]

OFFICE OF DEFENSE MOBILIZATION

[ODM (DPA) Request No. 53A—DPAV-56 (a)]

TIDEWATER OIL CO.

ADDITION TO LIST OF COMPANIES ACCEPTING REQUEST TO PARTICIPATE IN PLAN OF ACTION UNDER VOLUNTARY AGREEMENT RELATING TO FOREIGN PETROLEUM SUPPLY

Pursuant to section 708 of the Defense Production Act of 1950, as amended, there is published the name of the following company which has accepted the request to participate in a plan of action entitled, "Plan of Action Under Voluntary Agreement Relating to Foreign Petroleum Supply," dated August 10, 1956. The request and original list of acceptances were published in 21 F. R. 6686, September 5, 1956.

Tidewater Oil Company, 79 New Montgomery Street, San Francisco, California.

(Sec. 708, 64 Stat. 818, as amended; 50 U. S. C. App. Sup. 2158; Executive Order 10480, August 14, 1953, 18 F. R. 4939)

Dated: September 11, 1956.

ARTHUR S. FLEMMING, *Director.*

[F. R. Doc. 56-7386; Filed, Sept. 13, 1956; 8:45 a. m.]

[ODM (DPA) Request No. 53—DPAV 46 (f)]

TIDEWATER OIL CO.

ADDITION TO LIST OF COMPANIES ACCEPTING REQUEST TO PARTICIPATE IN THE VOLUNTARY AGREEMENT RELATING TO FOREIGN PETROLEUM SUPPLY, AS AMENDED

Pursuant to section 708 of the Defense Production Act of 1950, as amended, there is published the name of the following company which has accepted the request to participate in the voluntary agreement entitled, "Voluntary Agreement Relating to Foreign Petroleum Supply, as Amended," dated May 8, 1956. The request and original list of acceptances were published in 21 F. R. 5703, July 28, 1956, and an additional acceptance was published in 21 F. R. 6687, September 5, 1956.

Tidewater Oil Company, 79 New Montgomery Street, San Francisco, California.

(Sec. 708, 64 Stat. 818, as amended; 50 U. S. C. App. Sup. 2158; Executive Order 10480, August 14, 1953, 18 F. R. 4939)

Dated: September 11, 1956.

ARTHUR S. FLEMMING, *Director.*

[F. R. Doc. 56-7387; Filed Sept. 13, 1956; 8:45 a. m.]

OTTO L. NELSON, JR.

APPOINTEE'S STATEMENT OF CHANGES IN BUSINESS INTERESTS

The following statement lists the names of concerns required by subsection 710 (b) (6) of the Defense Production Act of 1950, as amended.

Additions

Officer; Vice President, New York Building Congress, Inc.

Stocks; Farmers Cooperative Association.

Deletions

Officer; Treasurer, New York Building Congress, Inc.

This amends statement previously published in the FEDERAL REGISTER January 20, 1956 (21 F. R. 439).

Dated: July 10, 1956.

OTTO L. NELSON, JR.

[F. R. Doc. 56-7404; Filed, Sept. 13, 1956; 8:49 a. m.]

JAMES B. FISK

APPOINTEE'S STATEMENT OF CHANGES IN BUSINESS INTERESTS

The following statement lists the names of concerns required by subsection 710 (b) (6) of the Defense Production Act of 1950, as amended.

No change since last submission of Form ODM-163.

This amends statement previously published in the FEDERAL REGISTER April 28, 1956 (21 F. R. 2800).

Dated: August 1, 1956.

JAMES B. FISK.

[F. R. Doc. 56-7405; Filed, Sept. 13, 1956; 8:49 a. m.]

CHESTER F. OGDEN

APPOINTEE'S STATEMENT OF CHANGES IN BUSINESS INTERESTS

The following statement lists the names of concerns required by subsection 710 (b) (6) of the Defense Production Act of 1950, as amended.

Accessions

General Dynamics, McLouth Steel, General Electric.

Deletions

New Continental Oil Co. of Canada, Ltd.

This supersedes statement previously published in the FEDERAL REGISTER May 4, 1956 (21 F. R. 2995).

Dated: August 1, 1956.

CHESTER F. OGDEN.

[F. R. Doc. 56-7406; Filed, Sept. 13, 1956; 8:49 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3510]

COLUMBIA GAS SYSTEM, INC.

NOTICE OF PROPOSED ISSUANCE AND SALE AT COMPETITIVE BIDDING OF PRINCIPAL AMOUNT OF DEBENTURES

SEPTEMBER 10, 1956.

Notice is hereby given that The Columbia Gas System, Inc. ("Columbia"), a registered holding company, has filed with this Commission a declaration and an amendment thereto pursuant to the Public Utility Holding Company Act of 1935 ("act"), designating sections 6 and 7 thereof and Rule U-50 thereunder as applicable to the proposed transaction, which is summarized as follows:

Columbia proposes to issue and sell, subject to the competitive bidding requirements of Rule U-50, $25,000,000 principal amount of ____ percent Debentures, Series G, due 1981 ("New Debentures"). The interest rate to be borne by the New Debentures and the price to the company (to be not less than 99 percent nor more than 101½ percent of the principal amount) will be determined by competitive bidding.

The New Debentures will be issued under the Indenture between Columbia and Guaranty Trust Company of New York, as Trustee, dated as of August 1, 1950, as heretofore supplemented and as to be further supplemented by a Sixth Supplemental Indenture, dated as of October 1, 1956.

The proceeds of the New Debentures together with other funds will be applied to Columbia's 1956 construction program, involving total expenditures of approximately $73,000,000. It is estimated that the additional $25,000,000 to be raised by the sale of the New Debentures will enable Columbia to complete this program.

A statement of the fees and expenses paid or to be paid in connection with the proposed transaction will be filed by amendment.

It is stated that no other regulatory commission has jurisdiction over the proposed transaction.

Notice is further given that any interested person may, not later than September 25, 1956, at 5:30 p. m., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues, if any, of fact or law proposed to be controverted; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date said declaration, as filed or as amended, may be permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may grant exemption from its rules as provided in Rules U-20 (a) and U-100 or take such other action as it may deem appropriate.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-7398; Filed, Sept. 13, 1956; 8:48 a. m.]

[File No. 70-3504]

PHILADELPHIA CO. AND STANDARD GAS AND ELECTRIC CO.

ORDER AUTHORIZING RENEWAL OF PROMISSORY NOTE

SEPTEMBER 10, 1956.

Philadelphia Company ("Philadelphia"), a subsidiary of Standard Gas and Electric Company ("Standard Gas") and a registered holding company, and Standard Gas, a registered holding company and subsidiary of Standard Shares, Inc., a registered holding company in the process of conversion into an investment company, have filed a joint application-declaration pursuant to sections 7 and 10 of the Public Utility Holding Company Act of 1935 ("act") regarding the following proposed transaction:

Philadelphia will issue and deliver to Standard Gas a renewal promissory note in replacement of a promissory note in the principal amount of $2,500,000 which will mature on September 10, 1956 and which bears interest at the rate of 3¼ percent per annum, payable monthly. The renewal note, in the same principal amount, will bear interest payable monthly at the prime interest rate prevailing at the date of the new note for short-term commercial bank loans, and will mature September 10, 1957, with the right of the issuer to anticipate at any time the payment of all or any part of the principal thereof.

Due notice having been given of the filing of said application-declaration, and a hearing not having been requested of or ordered by the Commission, and the Commission finding that the applicable provisions of the act and the rules promulgated thereunder are satisfied and that no adverse findings are necessary, and deeming it appropriate in the public interest and in the interest of investors and consumers that the application-declaration be granted and permitted to become effective forthwith:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of the act, that said application-declaration be, and hereby is, granted and permitted to become effective forthwith, subject to the terms and conditions prescribed in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-7399; Filed, Sept. 13, 1956; 8:48 a. m.]

[File No. 7-1824]

NORTHEAST AIRLINES, INC.

NOTICE OF APPLICATION FOR UNLISTED TRADING PRIVILEGES, AND OF OPPORTUNITY FOR HEARING

SEPTEMBER 10, 1956.

In the matter of application by the Boston Stock Exchange for unlisted trading privileges in Northeast Airlines, Inc., common stock; File No. 7-1824.

The above named stock exchange, pursuant to section 12 (f) (2) of the Securities Exchange Act of 1934 and Rule X-12F-1 promulgated thereunder, has made application for unlisted trading privileges in the specified security, which is listed and registered on the American Stock Exchange.

Upon receipt of a request, on or before September 26, 1956 from any interested person, the Commission will determine whether to set the matter down for hearing. Such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing. In addition, any interested person may submit his views or any additional facts bearing on this application by means of a letter addressed to the Secretary of the Securities and Exchange Commission, Washington 25, D. C. If no one requests a hearing on this matter, this application will be determined by order of the Commission on the basis of the facts stated in the application and other information contained in the official file of the Commission pertaining to the matter.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-7400; Filed, Sept. 13, 1956; 8:48 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

[Vesting Order SA-130]

WILHELM LEIPZIGER SPIRITUS-UND ZUCKERFABRIKS A. G.

In re: Bonds owned by Wilhelm Leipziger Spiritus-und Zuckerfabriks A. G., F-34-526.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: Those certain debts or other obligations, matured or unmatured, evidenced by $50,000 principal amount European Mortgage Series "C" Corporation 7 percent Income Bonds due September 15, 1967 bearing the numbers M186/227 @ $1,000 and D28/43 @ $500 registered in the name of Wilhelm Leipziger Spiritus-und Zuckerfabriks A. G., together with any and all accruals to the aforesaid debts or other obligations and any and all rights to demand, enforce and collect the same, and any and all rights in, to and under the aforesaid bonds,

is property within the United States, which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947 was, owned directly or indirectly by Wilhelm Leipziger Spiritus-und Zuckerfabriks A. G., Budapest, Hungary, a national of Hungary as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on September 11, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7402; Filed, Sept. 13, 1956; 8:49 a. m.]